PART FOUR The War for Independence

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The relative peace achieved after Parliament's repeal of the Stamp Act was short-lived. In 1767, Parliament passed the Townshend Acts, which reinstituted direct taxation on the colonies and imposed antismuggling regulations and legal proceedings at least as troublesome to the colonists as those that led to the Stamp Act Congress. Opposition quickly developed. Readings in this section illustrate the increasingly wide gulf between Americans' views of their rights and the British view of the status of any colony or subordinate people within the Empire.

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A Discourse at the Dedication of the Tree of Liberty

"A SON OF LIBERTY" [SILAS DOWNER]

1768

Silas Downer (1729–85) was a prominent lawyer who was active in Rhode Island politics and was among the more prominent figures opposed to the Townshend Acts. The speech reproduced here (published under the pseudonym "A Son of Liberty") was delivered at the dedication of a Tree of Liberty. Ceremonies dedicating such trees went back to the days before the Norman conquest of Britain, when Saxon clans would assemble for town meetings under a large tree. Saxons had continued this tradition under Norman rule in remembrance of their lost liberty, and their descendants continued the tradition as a sign of their willingness to defend their chartered rights. The practice was common in America long before the Revolution and was part of a wider tradition of public speaking that included sermons delivered on election days by prominent local ministers.

A Discourse at the Dedication of the Tree of Liberty

Dearly beloved Countrymen,

We His Majesty's subjects, who live remote from the throne, and are inhabitants of a new world, are here met together to dedicate the *Tree of Liberty.* On this occasion we chearfully recognize our allegiance to our sovereign Lord, *George* the third, King of *Great-Britain,* and supreme Lord of these dominions, but utterly deny any other dependence on the inhabitants of that island, than what is mutual and reciprocal between all mankind.—It is good for us to be here, to confirm one another in the principles of liberty, and to renew our obligations to contend earnestly therefor.

Our forefathers, with the permission of their sovereign, emigrated from *England,* to avoid the unnatural oppressions which then took place in that country. They endured all sorts of miseries and hardships, before they could establish any tolerable footing in the new world. It was then hoped and expected that the blessing of freedom would be the inheritance of their posterity, which they preferred to every other temporal consideration. With the extremest toil, difficulty, and danger, our great and noble ancestors founded in *America* a number of colonies under the allegiance of the crown of *England.* They forfeited not the privileges of *Englishmen* by removing themselves hither, but brought with them every right, which they could or ought to have enjoyed had they abided in *England.*—They had fierce and dreadful wars with savages, who often poured their whole force on the infant plantations, but under every difficulty and discouragement, by the good providence of God they multiplied exceedingly and flourished, without receiving any protection or assistance from *England.* They were free from impositions. Their kings were well disposed to them, and their fellow subjects in *Great Britain* had not then gaped after *Naboth's* vineyard. Never were people so happy as our forefathers, after they had brought the land to a state of inhabitancy, and procured peace with the natives. They sat every man under his own vine, and under his own fig tree. They had but few wants; and luxury, extravagance, and debauchery, were known only by the names, as the things signified thereby, had not then arrived from the old world. The public worship of God, and the education of children and youth, were never more encouraged in any part of the globe. The laws which they made for the general advantage were exactly carried into execution. In fine, no country ever experienced more perfect felicity. Religion, learning, and a pure administration of justice were exceeding conspicuous, and kept even pace with the population of the country.

When we view this country in its extent and variety of climates, soils, and produce, we ought to be exceeding thankful to divine goodness in bestowing it upon our forefathers, and giving it as an heritage for their children.—We may call it the promised land, a good land and a large—a land of hills and vallies, of rivers, brooks, and springs of

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water—a land of milk and honey, and wherein we may eat bread to the full. A land whose stones are iron, the most useful material in all nature, and of other choice mines and minerals; and a land whose rivers and adjacent seas are stored with the best of fish. In a word, no part of the habitable world can boast of so many natural advantages as this northern part of *America.*

But what will all these things avail us, if we be deprived of that liberty which the GOD of nature hath given us. View the miserable condition of the poor wretches, who inhabit countries once the most fertile and happy in the world, where the blessings of liberty have been removed by the hand of arbitrary power. Religion, learning, arts, and industry, vanished at the deformed appearance of tyranny. Those countries are depopulated, and the scarce and thin inhabitants are fast fixed in chains and slavery. They have nothing which they can call their own; even their lives are at the absolute disposal of the monsters who have usurped dominion over them.

The dreadful scenes of massacre and bloodshed, the cruel tortures and brutal barbarities, which have been committed on the image of GOD, with all the horrible miseries which have overflowed a great part of the globe, have proceeded from wicked and ambitious men, who usurped an absolute dominion over their fellows. If this country should experience such a shocking change in their affairs, or if despotic sway should succeed the fair enjoyment of liberty, I should prefer a life of freedom in *Nova-Zembla, Greenland,* or in the most frozen regions in the world, even where the use of fire is unknown, rather than to live here to be tyrannized over by any of the human race.

Government is necessary. It was instituted to secure to individuals that natural liberty, which no human creature hath a right to deprive them of. For which end the people have given power unto the rulers to use as there may be occasion for the good of whole community, and not that the civil magistrate, who is only the peoples trustee, should make use of it for the hurt of the governed. If a commander of a fortress, appointed to make defence against the approaches of an enemy, should breech about his guns and fire upon his own town, he would commence tyrant and ought to be treated as an enemy to mankind.

The ends of civil government have been well answered in *America,* and justice duly administred in general, while we were governed by laws of our own make, and consented to by the Crown. It is of the very essence of the *British* constitution, that the people shall not be governed by laws, in the making of which they had no hand, or have their monies taken away without their own consent. This privilege is *inherent,* and cannot be *granted* by any but the Almighty. It is a natural right which no creature can *give,* or hath a right to take away. The great charter of liberties, commonly called *Magna Charta,* doth not *give* the privileges therein mentioned, nor doth our *Charters,* but must be considered as only declaratory of our rights, and in affirmance of them. The formation of legislatures was the first object of attention in the colonies. They all recognized the King of *Great-Britain,* and a government of each was erected, as like to that in *England,* as the nature of the country, and local circumstances, would admit. Assemblies or parliaments were instituted, wherein were present the King by his substitutes, with a council of great men, and the people, by their representatives. Our distant situation from *Great-Britain,* and other attendant circumstances, make it impossible for us to be represented in the parliament of that country, or to be governed from thence. The exigencies of state often require the immediate hand of governments and confusion and misrule would ensue if government was not topical. From hence it will follow that our legislatures were *compleat,* and that the parliamentary authority of *Great-Britain* cannot be extended over us without involving the greatest contradiction: For if we are to be controuled by their parliament, our own will be useless. In short, I cannot be perswaded that the parliament of *Great-Britain* have any lawful right to make *any laws whatsoever* to bind us, because there can be no fountain from whence such right can flow. It is universally agreed amongst us that they cannot tax us, because we are not represented there. Many other acts of legislation may affect us as nearly as taking away our monies. There are many kinds of property as dear to us as our money, and in which we may be greatly injured by allowing them a power in, or to direct about. Suppose the parliament of *Great-Britain* should undertake to prohibit us from walking in the streets and highways on certain saints days, or from being abroad after a certain time in the evening, or (to come nearer to the matter) to restrain us from working up and manufacturing materials of our own growth, would not our liberty and property be as much affected by such regulations as by a tax act? It is the very spirit of the constitution that the King's subjects shall not be governed by laws, in the making of which they had no share; and this principle is

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the greater barrier against tyranny and oppression. If this bulwark be thrown down, nothing will remain to us but a dreadful expectation of certain slavery. If any acts of the *British* parliament are found suitable and commensurate to the nature of the country, they may be introduced, or adopted, by special acts of our own parliaments, which would be equivalent to making them anew; and without such introduction or adoption, our allowance of the validity or force of *any* act of the *English* or *British* parliament in these dominions of the King, must and will operate as a concession on our part, that our fellow subjects in another country can choose a set of men among themselves, and impower them to make laws to bind us, as well in the matter of taxes as in every other case. It hath been fully proved, and is a point not to be controverted, that in our constitution the having of property, especially a landed estate, entitles the subject to a share in government and framing of laws. The *Americans* have such property and estate, but are not, and never can be represented in the *British* parliament. It is therefore clear that that assembly cannot pass *any* laws to bind us, but that we must be governed by our own parliaments, in which we can be in person, or by representation.

But of late a new system of politics hath been adopted in *Great-Britain,* and the *common people* there claim a sovereignty over us although they be only fellow subjects. The more I consider the nature and tendency of this claim, the more I tremble for the liberties of my country: For although it hath been unanswerably proved that they have no more power over us than we have over them, yet relying on the powerful logic of guns and cutlery ware, they cease not to make laws injurious to us; and whenever we expostulate with them for so doing, all the return is a discharge of threats and menaces.

It is now an established principle in *Great-Britain,* that we are subject to the *people* of that country, in the same manner as they are subject to the Crown. They expressly call us their subjects. The language of every paultry scribler, even of those who pretend friendship for us in some things, is after this lordly stile, *our colonies—our western dominions—our plantations—our islands—our subjects in America—our authority—our government*—with many more of the like imperious expressions. Strange doctrine that we should be the subjects of subjects, and liable to be controuled at their will! It is enough to break every measure of patience, that fellow subjects should assume such power over us. They are so possessed with the vision of the plenitude of their power, that they call us rebels and traitors for denying their authority. If the King was an absolute monarch and ruled us according to his absolute will and pleasure, as some kings in *Europe* do their subjects, it would not be in any degree so humiliating and debasing, as to be governed by one part of the Kings subjects who are but equals. From every part of the conduct of the administration, from the acts, votes, and resolutions of the parliament, and from all the political writings in that country, and libels on *America,* this appears to be their claim, which I think may be said to be an invasion of the rights of the King, and an unwarrantable combination against the liberties of his subjects in *America.*

Let us now attend a little to the conduct of that country towards us, and see if it be possible to doubt of their principles. In the 9th. of *Anne,* the post-office act was made, which is a tax act, and which annually draws great sums of money from us. It is true that such an establishment would have been a great use, but then the regulation ought to have been made among ourselves. And it is a clear point to me that let it be ever so much to the advantage of this country, the parliament had no more right to interfere, than they have to form such an establishment in the electorate of *Hanover,* the King's *German* dominions.

They have prohibited us from purchasing any kind of goods or manufactures of *Europe* except from *Great-Britain,* and from selling any of our own goods or manufactures to foreigners, a few inconsiderable articles excepted, under pain of confiscation of vessel and cargo, and other heavy penalties. If they were indeed our sovereign lords and masters, as they pretend to be, such regulations would be in open violation of the laws of nature. But what adds to this grievance is, that in the trade between us they can set their own prices both on our and their commodities, which is in effect a tax and of which they have availed themselves: And moreover, duties are laid on divers enumerated articles on their import, for the express purpose of a revenue. They freely give and grant away our monies without our consent, under the specious pretence of defending, protecting, and securing *America,* and for the charges of the administration of justice here, when in fact, we are not indebted to them one farthing for any defence or protection from the first planting the country to this moment, but on the contrary, a balance is due to us for our exertion in the general cause; and besides, the advantages which have accrued to them in their trade with us hath put

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millions in their pockets. As to the administration of justice, no country in the world can boast of a purer one than this, the charges of which have been always chearfully provided for and paid without their interposition. There is reason to fear that if the *British* people undertake the business of the administration of justice amongst us it will be worse for us, as it may cause an introduction of their fashionable corruptions, whereby our pure streams of justice will be tainted and polluted. But in truth, by the administration of justice is meant the keeping up an outfit of officers to rob us of our money, to keep us down and humble, and to frighten us out of our undoubted rights.

And here it may be proper to mention the grievances of the custom house. Trade is the natural right of all men, but it is so restrained, perplexed and fettered that the officers of the customs, where there happens a judge of admiralty to their purpose, can seize and get condemned any vessel or goods they see fit. They will seize a vessel without shewing any other cause than their arbitrary will, and keep her a long time without exhibiting any libel, during all which time the owner knows not on what account she is seized, and when the trial comes on, he is utterly deprived of one by a jury, contrary to the usages among our fellow subjects in *Britain,* and perhaps all his fortune is determinable by a single, base, and infamous tool of a violent, corrupt, and wicked administration. Besides, these officers, who seem to be born with long claws, like eagles, exact most exorbitant fees, even from small coasting vessels, who pass along shore, and carry from plantation to plantation, bread, meat, firewood, and other necessaries, and without the intervention of which the country would labour under great inconveniencies, directly contrary to the true intent and meaning of one of the acts of trade, by which they pretend to govern themselves, such vessels by that act not being obliged to have so much as a register. It is well known that their design in getting into office is to enrich themselves by fleecing the merchants, and it is thought that very few have any regard to the interest of the Crown, which is only a pretence they make in order to accomplish their avaricious purposes.

The *common people* of *Great-Britain* very liberally give and grant away the property of the *Americans* without their consent, which if yielded to by us must fix us in the lowest bottom of slavery: For if they can take away one penny from us against our wills, they can take all. If they have such power over our properties they must have a proportionable power over our persons; and from hence it will follow, that they can demand and take away our lives, whensoever it shall be agreeable to their sovereign wills and pleasure.

This claim of the commons to a sovereignty over us, is founded by them on their being the *Mother Country.* It is true that the first emigrations were from *England;* but upon the whole, more settlers have come from *Ireland, Germany,* and other parts of *Europe,* than from *England.* But if every soul came from *England,* it would not give them any title to sovereignty or even to superiority. One spot of ground will not be sufficient for all. As places fill up, mankind must disperse, and go where they can find a settlement; and being born free, must carry with them their freedom and independence on their fellows, go where they will. Would it not be thought strange if the commonalty of the *Massachusetts Bay* should require our obedience, because this colony was first settled from that dominion? By the best accounts, *Britain* was peopled from *Gaul,* now called *France,* wherefore according to their principles the parliaments of *France* have a right to govern them. If this doctrine of the maternal authority of one country over another be a little examined, it will be found to be the greatest absurdity that ever entered into the head of a politician.—In the time of *Nimrod,* all mankind lived together on the plains of *Shinar,* from whence they were dispersed at the building of *Babel.* From that dispersion all the empires, kingdoms, and states in the world are derived. That this doctrine may be fully exposed, let us suppose a few *Turks* or *Arabs* to be the present inhabitants of the plains of *Shinar,* and that they should demand the obedience of every kingdom, state, and country in the world, on account of their being the *Mother Country,* would it be one jot more ridiculous than the claim made by the parliament of *Great-Britain* to rule and reign over us? It is to be hoped that in future the words *Mother Country* will not be so frequently in our mouths, as they are only sounds without meaning.

Another grievance to be considered, is the alarming attempt of the people of *Old England* to restrain our manufactures. This country abounds in iron, yet there is an act of parliament, passed in the late King's reign to restrain us from manufacturing it into plates and rods by mill work, the last of which forms are absolutely necessary for the making of nails, the most useful article in a new country that can be conceived.—Be astonished all the world, that the people of a country who call themselves Christians and

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a civilized nation, should imagine that any principles of policy will be a sufficient excuse, for their permitting their fellow subjects on a distant part of the earth from making use of the blessings of the GOD of nature. There would be just as much reason to prohibit us from spinning our wool and flax, or making up our cloaths. Such prohibitions are infractions on the natural rights of men and are utterly void.

They have undertook, at the distance of three thousand miles, to regulate and limit our trade with the natives round about us, and from whom our lands were purchased—a trade which we opened ourselves, and which we ought to enjoy unrestricted. Further, we are prohibited by a people, who never set foot here from making any more purchases from the *Indians,* and even of settling those which we have made. The truth is, they intend to take into their own hands the whole of the back lands, witness the patents of immense tracts continually solicited and making out to their own people. The consequence will be shocking, and we ought to be greatly alarmed at such a procedure. All new countries ought to be free to settlers, but instead thereof every settler on these patent lands, and their descendants forever will be as compleat slaves to their landlords, as the common people of *Poland* are to their lords.

A standing army in time of profound peace is cantoned and quartered about the country to awe and intimidate the people.—Men of war and cutters are in every port, to the great distress of trade. In time of war we had no station ships, but were obliged to protect our trade, but now in time of full peace, when there are none to make us afraid we are visited with the plague of men of war, who commit all manner of disorders and irregularities; and behave in as hostile a manner as if they were open and declared enemies. In open defiance of civility, and the laws of *Great-Britain,* which they protest to be governed by, they violently seize and forcibly carry on board their ships the persons of the King's loving subjects. What think ye my brethren, of a military government in each town?—Unless we exert ourselves in opposition to their plan of subjecting us, we shall all have soldiers quartered about upon us, who will take the absolute command of our families. Centry boxes will be set up in all the streets and passages, and none of us will be able to pass without being brought too by a soldier with his fixed bayonet, and giving him a satisfactory account of ourselves and business. Perhaps it will be ordered that we shall put out fire and candle at eight of the clock at night, for fear of conspiracy. From which tearful calamities may the GOD of our fathers deliver us!

But after all, nothing which has yet happened ought to alarm us more than their suspending government here, because our parliaments or assemblies (who ought to be free) do not in their votes and resolutions please the populace of *Great Britain.* Suppose a parcel of mercenary troops in *England* should go to the parliament house, and order the members to vote as they directed under pain of dissolution, how much liberty would be left to them? In short, this dissolving of government upon such pretences as are formed, leaves not the semblance of liberty to the people. —We all ought to resent the treatment which the *Massachusetts Bay* hath had, as their case may soon come to be our own.

We are constantly belied and misrepresented in our gracious sovereign, by the officers who are sent hither, and others who are in the cabal of ruining this country. They are the persons who ought to be called rebels and traitors, as their conduct is superlatively injurious to the King and his faithful subjects.

Many other grievances might be enumerated, but the time would fail.—Upon the whole, the conduct of *Great-Britain* shews that they have formed a plan to subject us so effectually to their absolute commands, that even the freedom of speech will be taken from us. This plan they are executing as fast as they can; and almost every day produces some effect of it. We are insulted and menaced only for petitioning. Our prayers are prevented from reaching the royal ear, and our humble supplications to the throne are wickedly and maliciously represented as so many marks of faction and disloyalty. If they can once make us afraid to speak or write, their purpose will be finished.— Then farewel liberty.—Then those who were crouded in narrow limits in *England* will take possession of our extended and fertile fields, and set us to work for them.

Wherefore, dearly beloved, let us with unconquerable resolution maintain and defend that liberty wherewith GOD hath made us free. As the total subjection of a people arises generally from gradual encroachments, it will be our indispensible duty manfully to oppose every invasion of our rights in the beginning. Let nothing discourage us from this duty to ourselves and our posterity. Our fathers fought and found freedom in the wilderness; they cloathed themselves with the skins of wild beasts, and lodged under trees and among bushes; but in that state they were happy be-

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cause they were free.—Should these our noble ancestors arise from the dead, and find their posterity trucking away that liberty, which they purchased at so dear a rate, for the mean trifles and frivolous merchandize of *Great Britain,* they would return to the grave with a holy indignation against us. In this day of danger let us exert every talent, and try every lawful mean, for the preservation of our liberties. It is thought that nothing will be of more avail, in our present distressed situation, than to stop our imports from *Britain.* By such a measure this little colony would save more than 173,000 pounds, lawful money, in one year, besides the advantages which would arise from the industry of the inhabitants being directed to the raising of wool and flax, and the establishment of manufactures. Such a measure might distress the manufacturers and poor people in *England,* but that would be their misfortune. Charity begins at home, and we ought primarily to consult our own interest; and besides, a little distress might bring the people of that country to a better temper, and a sense of their injustice towards us. No nation or people in the world ever made any figure, who were dependent on any other country for their food or cloathing. Let us then in justice to ourselves and our children, break off a trade so pernicious to our interest, and which is likely to swallow up both our estates and liberties.—A trade which hath nourished the people, in idleness and dissipation.—We cannot, we will not, betray the trust reposed in us by our ancestors, by giving up the least of our liberties.—We will be freemen, or we will die—we cannot endure the thought of being governed by subjects, and we make no doubt but the Almighty will look down upon our righteous contest with gracious approbation. We cannot bear the reflection that this country should be yielded to them who never had any hand in subduing it. Let our whole conduct shew that we know what is due to ourselves. Let us act prudently, peaceably, firmly, and jointly. Let us break off all trade and commerce with a people who would enslave us, as the only means to prevent our ruin. May we strengthen the hands of the civil government here, and have all our exertions tempered with the principles of peace and order, and may we by precept and example encourage the practice of virtue and morality, without which no people can be happy.

It only remains now, that we dedicate the *Tree of Liberty.*

We do therefore, in the name and behalf of all the true Sons *of* Liberty *in* America, Great-Britain, Ireland, Corsica, *or wheresoever they are dispersed throughout the world,* dedicate *and* solemnly devote *this tree, to be a* Tree *of* Liberty—*May all our councils and deliberations under it's venerable branches be guided by wisdom, and directed to the support and maintenance of that liberty, which our renowned forefathers sought out and found under trees and in the wilderness.—May it long flourish, and may the* Sons *of* Liberty *often repair hither, to confirm and strengthen each other.—When they look towards this sacred* Elm, *may they be penetrated with a sense of their duty to themselves, their country, and their posterity:— And may they, like the house of* David, *grow stronger and stronger, while their enemies, like the house of* Saul, *grow weaker and weaker.* Amen.

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Letters from a Farmer in Pennsylvania, Letters V and IX

JOHN DICKINSON

1767–68

John Dickinson (1732–1808) was a lawyer, a member of the Pennsylvania Assembly, and a leading spokesman against parliamentary power in America. His argument, that Parliament's acts constituted dangerous innovations violating ancient chartered rights, became the centerpiece of colonial opposition to the Stamp Act and subsequent parliamentary conduct. His "Letters from a Farmer in Pennsylvania to the Inhabitants of the British Colonies" were highly influential and widely read throughout the colonies. Dickinson wrote the Resolutions of the Stamp Act Congress but would later refuse to sign the Declaration of Independence, on the grounds that independence was a radical step he could not approve.

Letter V

My dear Countrymen,

Perhaps the objection to the late act, imposing duties upon paper, etc. might have been safely rested on the argument drawn from the universal conduct of parliaments and ministers, from the first existence of these colonies, to the administration of Mr. *Greenville.*

What but the indisputable, the acknowledged exclusive right of the colonies to tax themselves, could be the reason, that in this long period of more than one hundred and fifty years, no statute was ever passed for the sole purpose of raising a revenue on the colonies? And how clear, how cogent must that reason be, to which every parliament, and every minister, for so long a time submitted, without a single attempt to innovate?

England, in part of that course of years, and *Great Britain,* in other parts, was engaged in several fierce and expensive wars; troubled with some tumultuous and bold parliaments; governed by many daring and wicked ministers; yet none of them ever ventured to touch the *Palladium* of *American* liberty. Ambition, avarice, faction, tyranny, all revered it. Whenever it was necessary to raise money on the colonies, the requisitions of the crown were made, and dutifully complied with. The parliament, from time to time, regulated their trade, and that of the rest of the empire, to preserve their dependence, and the connection of the whole in good order.

The people of *Great Britain,* in support of their privileges, boast much of their antiquity. It is true they are ancient; yet it may well be questioned, if there is a single privilege of a *British* subject, supported by longer, more solemn, or more uninterrupted testimony, than the exclusive right of taxation in these colonies. The people of *Great Britain* consider that kingdom as the sovereign of these colonies, and would now annex to that sovereignty a prerogative never heard of before. How would they bear this, was the case their own? What would they think of a *new* prerogative claimed by the crown? We may guess what their conduct would be, from the transports of passion into which they fell about the late embargo, tho' laid to relieve the most emergent necessities of state, admitting of no delay; and for which there were numerous precedents. Let our liberties be treated with the same tenderness and it is all we desire.

Explicit as the conduct of parliaments, for so many ages, is, to prove that no money can be levied on these colonies by parliament, for the purpose of raising a revenue, yet it is not the only evidence in our favor.

Every one of the most material arguments against the legality of the *Stamp Act,* operates with equal force against the act now objected to; but as they are well known, it seems unnecessary to repeat them here.

This general one only shall be considered at present: That tho' these colonies are dependent on *Great Britain;*

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and tho' she has a legal power to make laws for preserving that dependence; yet it is not necessary for this purpose, nor essential to the relation between a mother country and her colonies, as was eagerly contended by the advocates for the *Stamp Act,* that she should raise money on them without their consent.

Colonies were formerly planted by warlike nations, to keep their enemies in awe; to relieve their country, overburdened with inhabitants; or to discharge a number of discontented and troublesome citizens. But in more modern ages, the spirit of violence being, in some measure, if the expression may be allowed, sheathed in commerce, colonies have been settled by the nations of *Europe* for the purposes of trade. These purposes were to be attained, by the colonies raising for their mother country those things which she did not produce herself; and by supplying themselves from her with things they wanted. These were the *national objects* in the commencement of our colonies, and have been uniformly so in their promotion.

To answer these grand purposes, perfect liberty was known to be necessary; all history proving, that trade and freedom are nearly related to each other. By a due regard to this wise and just plan, the infant colonies, exposed in the unknown climates and unexplored wildernesses of this new world, lived, grew, and flourished.

The parent country, with undeviating prudence and virtue, attentive to the first principles of colonization, drew to herself the benefits she might reasonably expect, and preserved to her children the blessings on which those benefits were founded. She made laws, obliging her colonies to carry to her all those products which she wanted for her own use; and all those raw materials which she chose herself to work up. Besides this restriction, she forbade them to procure *manufactures* from any other part of the globe, or even the *products* of *European* countries, which alone could rival her, without being first brought to her. In short, by a variety of laws, she regulated their trade in such a manner as she thought most conducive to their mutual advantage, and her own welfare. A power was reserved to the crown of *repealing* any laws that should be enacted: The *executive* authority of government was also lodged in the crown, and its representatives; and an *appeal* was secured to the crown from all judgments in the administration of justice.

For all these powers, established by the mother country over the colonies; for all these immense emoluments derived by her from them; for all their difficulties and distresses in fixing themselves, what was the recompense made them? A communication of her rights in general, and particularly of that great one, the foundation of all the rest—that their property, acquired with so much pain and hazard, should be disposed of by none but themselves*—or, to use the beautiful and emphatic language of the sacred scriptures,† "that they should sit *every man* under his vine, and under his fig-tree, and NONE SHOULD MAKE THEM AFRAID."

Can any man of candor and knowledge deny, that these institutions form an affinity between *Great Britain* and her colonies, that sufficiently secures their dependence upon her? Or that for her to levy taxes upon them, is to reverse the nature of things? Or that she can pursue such a measure, without reducing them to a state of vassalage?

If any person cannot conceive the supremacy of *Great Britain* to exist, without the power of laying taxes to levy money upon us, the history of the colonies, and of *Great Britain,* since their settlement, will prove the contrary. He will there find the amazing advantages arising to her from them—the constant exercise of her supremacy—and their filial submission to it, without a single rebellion, or even the thought of one, from their first emigration to this moment—And all these things have happened, without one instance of *Great Britain's* laying taxes to levy money upon them.

How many *British*‡ *authors* have demonstrated that the

*"The power of *taxing themselves,* was the privilege of which the *English* were, with reason, *particularly jealous.*" (Hume's *Hist. of England*)

†Mic. iv. 4.

‡It has been said in the House of Commons, when complaints have been made of the decay of trade to any part of *Europe,* "That such things were not worth regard, as *Great Britain* was possessed of colonies that could consume more of her manufactures than she was able to supply them with." "As the case now stands, we shall show that the plantations are a spring of *wealth* to this nation, that they work for us, that their TREASURE CENTERS ALL HERE, and that the laws have tied them fast enough to us; so that it must be through our own fault and mismanagement, if they become independent of *England.*" (Davenant *on the Plantation Trade*)

"It is better that the islands should be supplied from the Northern Colonies than from *England;* for this reason, the provisions we might send to *Barbados, Jamaica,* etc. would be *unimproved* product of the earth, as grain of all kinds, or such product where there is little got by the improvement, as malt, salt beef and pork; indeed the exportation of salt first thither would be more advantageous, but the goods which

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present wealth, power and glory of their country, are founded upon these colonies? As constantly as streams tend to the ocean, have they been pouring the fruits of all their labors into their mother's lap. Good heaven! and shall a total oblivion of former tendernesses and blessings, be spread over the minds of a good and wise nation, by the sordid arts of intriguing men, who, covering their selfish projects under pretenses of public good, first enrage their countrymen into a frenzy of passion, and then advance their own influence and interest, by gratifying the passion, which they themselves have basely excited.

Hitherto *Great Britain* has been contented with her

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we send to the *Northern Colonies,* are such, whose *improvement* may be justly said, one with another, to be near *four fifths* of the value of the *whole commodity,* as apparel, household furniture, and many other things." (*Idem*)

"*New England* is the most prejudicial plantation to the kingdom of *England;* and yet, to do right to that most industrious *English* colony, I must confess, that though we lose by their unlimited trade with other foreign plantations, yet we are very great gainers by their direct trade to and from *Old England.* Our yearly exportations of *English* manufactures, malt and other goods, from hence thither, amounting, in my opinion, to *ten times* the value of what is imported from there; which calculation I do not make at random, but upon *mature consideration,* and, peradventure, upon *as much experience in this very trade,* as any other person will pretend to; and therefore, whenever reformation of our correspondency in trade with that people shall be thought on, it will, in my poor judgment, require GREAT TENDERNESS, and VERY SERIOUS CIRCUMSPECTION." (Sir Josiah Child's *Discourse on Trade*)

"Our plantations spend mostly our *English* manufactures, and those *of all sorts almost imaginable,* in *egregious quantities,* and employ nearly *two thirds of all our* English *shipping; so that we have more people* in *England,* by reason of our plantations in *America.*" (*Idem*)

Sir Josiah Child says, in another part of his work, "That not more than fifty families are maintained in *England* by the refining of sugar." From whence, and from what *Davenant* says, it is plain, that the advantages here said to be derived from the plantations by *England,* must be meant chiefly of the continental colonies.

"I shall sum up my whole remarks in our *American* colonies, with this observation, that as they are a certain annual revenue of SEVERAL MILLIONS STERLING to their mother country, they ought carefully to be protected, duly encouraged, and at every opportunity that presents itself, improved for their increment and advantage, as every one they can possibly reap, must at last return to us with interest." (BEAWES'S Lex Merc. Red.)

"We may safely advance, that our trade and navigation are greatly increased by our colonies, and that they really are a source of treasure and naval power to this kingdom, since THEY WORK FOR US, AND THEIR TREASURE CENTERS HERE. Before their settlement, our manufactures were few, and those but indifferent; the number of *English* merchants very small, and the whole shipping of the nation much inferior to what now belongs to the Northern Colonies only. *These are certain facts.* But since their establishment, our condition has altered for the better, almost to a degree beyond credibility—Our MANUFACTURES are prodigiously increased, chiefly by the demand for them in the plantations, where they AT LEAST TAKE OFF ONE HALF, and supply us with many valuable commodities for exportation, which is as great an emolument to the mother kingdom, as to the plantations themselves." (POSTLETHWAYT's *Univ. Dict. of Trade and Commerce*)

"Most of the nations of *Europe* have interfered with us, more or less, in divers of our staple manufactures, within half a century, not only in our woolen, but in our lead and tin manufactures, as well as our fisheries." (POSTLETHWAYT, *ibid.*)

"The inhabitants of our colonies, by carrying on a trade with their *foreign neighbors,* do not only occasion a *greater quantity of the goods and merchandises* of Europe *being sent from hence to them,* and a greater quantity of the product of America to be sent from them hither, *which would otherwise be carried from, and brought* to Europe *by foreigners,* but an increase of the seamen and navigation in those parts, which is of great strength and security, as well as of great advantage to our plantations in general. And though *some of our colonies* are not only for preventing the *importations of all goods of the same species they produce,* but suffer particular planters to *keep great runs of land in their possession uncultivated,* with design to prevent new settlements, whereby they imagine the prices of their commodities may be affected; yet if it be considered, that the markets of *Great Britain* depend on the markets of ALL *Europe in general,* and that the *European* markets in *general* depend on the proportion between the *annual consumption* and the *whole quantity* of each species *annually produced* by ALL *nations;* it must follow, that whether we or foreigners are the producers, carriers, importers and exporters of *American* produce, yet their respective prices in *each colony* (the difference of freight, customs and importations considered) will always bear proportion to the *general consumption* of the *whole quantity* of each sort, *produced in all colonies,* and *in all parts,* allowing only for the usual contingencies that trade and commerce, agriculture and manufacturers, are liable to in all countries." (POSTLETHWAYT, *ibid.*)

"It is certain, that from the very time *Sir Walter Raleigh,* the father of our *English* colonies, and his associates, first projected these establishments, there have been persons who have found an interest, in *misrepresenting,* or lessening the value of them—The attempts were called *chimerical* and dangerous. Afterwards many malignant suggestions were made about sacrificing so many *Englishmen* to the obstinate desire of settling colonies in countries which then produced very little advantage. But as these difficulties were gradually surmounted, those complaints vanished. No sooner were *these lamentations* over, but *others* arose in their stead; when it could be no longer said, that the colonies were *useless,* it was alleged that they were not *useful enough* to their mother country; that while we were loaded with taxes, they were absolutely free; that the *planters* lived like *princes,* while the inhabitants of *England* labored hard for a tolerable subsistence." (POSTLETHWAYT, *ibid.*)

"Before the settlement of these colonies," says *Postlethwayt,* "our manufactures were few, and those but indifferent. In those days we had not only our naval stores, but our ships from our neighbors. *Germany* furnished us with all things of metal, even to nails. Wine, paper, linens, and a thousand other things, came from *France. Portugal* supplied us with sugar; all the products of *America* were poured into us from *Spain;* and the *Venetians* and *Genoese* retailed to us the commodities of the *East Indies,* at their own price."

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prosperity. Moderation has been the rule of her conduct. But now, a general humane people, that so often has protected the liberty of strangers, is inflamed into an attempt to tear a privilege from her own children, which, if executed, must, in their opinion, sink them into slaves: AND FOR WHAT? For a pernicious power, not necessary to her, as her own experience may convince her; but horribly dreadful and detestable to them.

It seems extremely probable, that when cool, dispassionate posterity, shall consider the affectionate intercourse, the reciprocal benefits, and the unsuspecting confidence, that have subsisted between these colonies and their parent country, for such a length of time, they will execrate, with the bitterest curses, the infamous memory of those men, whose pestilential ambition unnecessarily, wantonly, cruelly, first opened the forces of civil discord between them; first turned their love into jealousy; and first taught these provinces, filled with grief and anxiety, to inquire—

Mens ubi materna est?
Where is maternal affection?
A Farmer

Letter IX

My dear Countrymen,

I have made some observations on the PURPOSES for which money is to be levied upon us by the late act of parliament. I shall now offer to your consideration some further reflections on that subject: And, unless I am greatly mistaken, if these purposes are accomplished according to the *expressed* intention of the act, they will be found effectually to *supersede* that authority in our respective assemblies, which is essential to liberty. The question is not,

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"If it be asked whether foreigners, for what goods they take of us, do not pay on *that consumption* a great portion of our taxes? It is admitted they do." (POSTLETHWAYT'S *Great Britain's True System*)

"If we are afraid that one day or other the colonies will revolt, and set up for themselves, as some seem to apprehend, let us not *drive* them to a *necessity* to *feel* themselves independent of us; as they *will* do, the moment they perceive that THEY CAN BE SUPPLIED WITH ALL THINGS FROM WITHIN THEMSELVES, and do not need our assistance. If we would keep them still dependent upon their mother country, and, in some respects, *subservient* to her *views* and welfare; let us make it their INTEREST always to be so." (TUCKER *on Trade*)

"Our colonies, while they have *English* blood in their veins, and have relations in *England,* and WHILE THEY CAN GET BY TRADING WITH US, the *stronger* and *greater* they grow, the *more* this *crown* and *kingdom* will *get* by them; and nothing but such an arbitrary power as shall make them desperate, can bring them to rebel." (DAVENANT *on the Plantation Trade*)

"The Northern colonies are not upon the same footing as those of the South; and having a worse soil to improve, they must find the recompense some other way, which only can be in property and dominion: Upon which score, any INNOVATIONS in the form of government there, should be cautiously examined, for fear of entering upon measures, by which the industry of the inhabitants be quite discouraged. 'Tis ALWAYS UNFORTUNATE for a people, either by CONSENT, or upon COMPULSION, to depart from their PRIMITIVE INSTITUTIONS, and THOSE FUNDAMENTALS, by which they were FIRST UNITED TOGETHER." (*Idem*) The most effectual way of *uniting* the colonies, is to make it their common interest to oppose the designs and attempts of *Great Britain.*

"All wise states will well consider how to preserve the advantages arising from colonies, and avoid the evils. And I conceive that there can be but TWO ways in nature to hinder them from throwing off their dependence; *one,* to keep it out of their *power,* and the *other,* out of their *will.* The *first* must be by *force;* and the *latter,* by *using them well,* and keeping them employed in such productions, and making such manufactures, as will support themselves and their families comfortably, *and procure them wealth too,* and at least not prejudice their mother country.

"*Force* can never be used effectually to answer the end, *without destroying the colonies themselves.* Liberty and encouragement are necessary to carry people thither, and to keep them together when they are there; and violence will hinder both. Any body of troops, considerable enough to awe them, and keep them in subjection, under the direction too of a needy governor, often sent thither to make his fortune, and at such a distance from any application for redress, will soon put an end to all planting, and leave the country to the soldiers alone, and if it did not, *would eat up all the profit of the colony.* For this reason, arbitrary countries have not been equally successful in planting colonies with free ones; and what they have done in that kind, has either been by force, at a vast expense, or *by departing from the nature of their government,* and *giving such privileges to planters as were denied to their other subjects.* And I dare say, that a few prudent laws, and a little prudent conduct, would soon give us far the greatest share of the riches of all *America,* perhaps drive many of the other nations out of it, or into our colonies for shelter.

"There are *so many exigencies* in all states, *so many foreign wars,* and *domestic disturbances,* that these colonies CAN NEVER WANT OPPORTUNITIES, if they watch for them, *to do what they shall find their interest to do;* and therefore we ought to take all the precautions in our power, that it shall never be *their interest* to act against that of their native country; an evil which can no other-wise be averted, than by keeping them *fully employed* in such trades *as will increase their own* as well as our wealth; for it is much to be feared, if we do not find employment for them, they may find it for us; the interest of the mother country, is always to keep them dependent, and so employed; and it requires all her addresses to do it; and it is certainly more *easily* and *effectually* done by *gentle* and *insensible* methods, than by *power* alone." (CATO's *Letters*)

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whether some branches shall be lopped off—The axe is laid to the root of the tree; and the whole body must infallibly perish, if we remain idle spectators of the work.

No free people ever existed, or can ever exist, without keeping, to use a common, but strong expression, "the purse strings," in their own hands. Where this is the case, *they* have a *constitutional check* upon the administration, which may thereby be brought into order *without violence:* But where such a power is not lodged in the *people,* oppression proceeds uncontrolled in its career, till the governed, transported into rage, seek redress in the midst of blood and confusion.

The elegant and ingenious Mr. *Hume,* speaking of the *Anglo-Norman* government, says—"Princes and Ministers were too ignorant, to be themselves sensible of the advantage attending an equitable administration, and there was no established council or *assembly,* WHICH COULD PROTECT THE PEOPLE, and BY WITHDRAWING SUPPLIES, regularly and PEACEABLY admonish the king of his duty, and ENSURE THE EXECUTION OF THE LAWS."

Thus this great man, whose political reflections are so much admired, makes *this power* one of the foundations of liberty.

The *English* history abounds with instances, proving that *this* is the proper and successful way to obtain redress to grievances. How often have kings and ministers endeavored to throw off this legal curb upon them, by attempting to raise money by a variety of inventions, under pretense of law, without having recourse to parliament? And how often have they been brought to reason, and peaceably obliged to do justice, by the exertion of this constitutional authority of the people, vested in their representatives?

The inhabitants of these colonies have, on numberless occasions, reaped the benefit of this authority *lodged in their assemblies.*

It has been for a long time, and now is, a constant instruction to all governors, *to obtain* a PERMANENT *support for the offices of government.* But as the author of "the administration of the colonies" says, "this order of the crown is generally, if not universally, rejected by the legislatures of the colonies."

They perfectly know *how much* their grievances would be regarded, if they had *no other* method of engaging attention, than by *complaining.* Those who rule, are extremely apt to think well of the constructions made by themselves in support of their own power. *These* are frequently erroneous, and pernicious to those they govern. Dry remonstrances, to show that such constructions are wrong and oppressive, carry very little weight with them, in the opinion of persons who gratify their own inclinations in making these constructions. *They* CANNOT understand the reasoning that opposes *their* power and desires. But let it be made *their interest* to understand such reasoning—and a *wonderful light* is instantly thrown upon the matter; and then, rejected remonstrances become as clear as "proofs of holy writ."*

The three most important articles that our assemblies, or any legislatures can provide for, are, First—the defense of the society: Secondly—the administration of justice: And thirdly—the support of civil government.

Nothing can properly regulate the expense of making provision for these occasions, but the *necessities* of the society; its *abilities;* the *conveniency* of the modes of levying money in it; the *manner* in which the laws have been executed; and the *conduct* of the officers of government: *All which* are circumstances, that *cannot* possibly be properly *known,* but by the society itself; or if they should be known, *will not* probably be properly *considered* but by that society.

If money be raised upon us by *others,* without our consent, for our "defense," those who are the judges in *levying* it, must also be the judges in *applying* it. Of consequence the money *said* to be taken from us for our defense, *may be employed* to our injury. We may be chained in by a line of fortifications—obliged to pay for the building and maintaining them—and be told, that they are for our defense. With what face can we dispute the fact, after having granted that those who *apply* the money, had a right to *levy* it? For surely, it is much easier for their wisdom to understand how to apply it in the best manner, than how to levy it in the best manner. Besides, the *right of levying* is of infinitely more consequence than *that of applying.* The people of *England,* who would burst out into a fury, if the crown should attempt to *levy* money by its own authority, have always assigned to the crown the *application* of money.

As to "the administration of justice"—the judges ought, in a well regulated state, to be equally independent of the executive and legislative powers. Thus in *England,* judges hold their commissions from the crown "*during good be-*

*Shakespeare.

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havior," and have salaries, suitable to their dignity, *settled* on them by parliament. The purity of the courts of law since this establishment, is a proof of the wisdom with which it was made.

But in these colonies, how fruitless has been every attempt to have the judges appointed "*during good behavior*"? Yet whoever considers the matter will soon perceive, that *such commissions* are beyond all comparison more necessary in these colonies, than they were in *England.*

The chief danger to the subject *there,* arose from the arbitrary *designs of the crown;* but *here,* the time may come, when we may have to contend with the *designs of the crown, and of a mighty kingdom.* What then must be our chance, when the laws of life and death are to be spoken by judges totally dependent on *that crown,* and *that kingdom*—sent over perhaps *from thence*—filled with *British prejudices*—and *backed by a* STANDING *army*—supported out of OUR OWN pockets, to "assert and maintain" OUR OWN "dependence and obedience"?

But supposing that through the extreme lenity that will prevail in the government *through all future ages,* these colonies will never behold any thing like the campaign of chief justice *Jeffereys,* yet what innumerable acts of injustice may be committed, and how fatally may the principles of liberty be sapped, by a succession of judges *utterly independent of the people?* Before such judges, the supple wretches, who cheerfully join in avowing sentiments inconsistent with freedom, will always meet with smiles; while the honest and brave men, who disdain to sacrifice their native land to their own advantage, but on every occasion boldly vindicate her cause, will constantly be regarded with frowns.

There are two other considerations relating to this head, that deserve the most serious attention.

By the late act, the officers of the customs are "impowered to enter into any HOUSE, warehouse, shop, cellar, or other place, in the *British* colonies or plantations in *America,* to search for or seize prohibited or unaccustomed goods," etc. on "writs granted by the superior or supreme court of justice, having jurisdiction within such colony or plantation respectively."

If we only reflect, that the judges of these courts are to be *during pleasure*—that they are to have "*adequate provision*" made for them, which is to continue *during their complaisant behavior*—that they may be *strangers* to these colonies—what an engine of oppression may this authority be in such hands?

I am well aware, that writs of this kind may be granted at home, under the seal of the court of exchequer: But I know also, that the greatest asserters of the rights of *Englishmen* have always strenuously contended, that *such a power* was dangerous to freedom, and expressly contrary to the common law, which ever regarded a man's *house* as his castle, or a place of perfect security.

If such power was in the least degree dangerous *there,* it must be utterly destructive to liberty *here.* For the people there have two securities against the undue exercise of this power by the crown, which are wanting with us, if the late act takes place. In the first place, if any injustice is done *there,* the person injured may bring his action against the offender, and have it tried before INDEPENDENT JUDGES, who are NO PARTIES IN COMMITTING THE INJURY. *Here* he must have it tried before DEPENDENT JUDGES, being the men WHO GRANTED THE WRIT.*

To say, that the cause is to be tried by a jury, can never reconcile men who have any idea of freedom, to *such a power.* For we know that sheriffs in almost every colony on this continent, are totally dependent on the crown; and packing of juries has been frequently practised even in the capital of the *British* empire. Even if juries are well inclined, we have too many instances of the influence of overbearing unjust judges upon them. The brave and wise men who accomplished the revolution, thought the *independency of judges* essential to freedom.

The other security which the people have at home, but which we shall want here, is this.

If this power is abused *there,* the parliament, the grand resource of the oppressed people, is ready to afford relief. Redress of grievances must precede grants of money. But what regard can *we* expect to have paid to our assemblies, when they will not hold even the puny privilege of *French* parliaments—that of registering, before they are put in execution, the edicts that take away our money.

The second consideration above hinted at, is this. There is a confusion in our laws, that is quite unknown in *Great Britain.* As this cannot be described in a more clear or exact manner, than has been done by the ingenious author of the history of *New York,* I beg leave to use his words. "The

*The writs for searching houses in *England,* are to be granted "under the seal of the court of exchequer," according to the statute—and that seal is kept by the chancellor of the exchequer. 4th Inst. p. 104.

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state of our laws opens a door to much controversy. The *uncertainty,* with respect to them, RENDERS PROPERTY PRECARIOUS, and GREATLY EXPOSES US TO THE ARBITRARY DECISION OF BAD JUDGES. The common law of *England* is generally received, together with such statutes as were enacted before we had a legislature of our own; but our COURTS EXERCISE A SOVEREIGN AUTHORITY, in determining *what parts of the common and statute law* ought to be extended: For it must be admitted, that the *difference of circumstances* necessarily requires us, in some cases, *to* REJECT *the determination* of both. In many instances, they have also extended even acts of parliament, passed since we had a distinct legislature, *which is greatly adding to our confusion.* The practice of our courts is no less *uncertain than* the law. Some of the *English* rules are adopted, others rejected. Two things therefore seem to be ABSOLUTELY NECESSARY for the PUBLIC SECURITY. First, the passing an act for settling the extent of the *English* laws. Secondly, that the courts ordain a general set of rules for the regulation of the practice."

How easy it will be, under this "state of our laws," for an artful judge, to act in the most arbitrary manner, and yet cover his conduct under specious pretences; and how difficult it will be for the injured people to obtain relief, may be readily perceived. We may take a voyage of 3000 miles to complain; and after the trouble and hazard we have undergone, we may be told, that the collection of the revenue, and maintenance of the prerogative, must not be discouraged—and if the misbehavior is so gross as to admit of no justification, it may be said, that it was an error in judgment only, arising from the confusion of our laws, and the zeal of the King's servants to do their duty.

If the commissions of judges are *during the pleasure of the crown,* yet if their salaries are *during the pleasure of the people,* there will be *some check* upon their conduct. Few men will consent to draw on themselves the hatred and contempt of those among whom they live, for the empty honor of being judges. It is the sordid love of gain, that tempts men to turn their backs on virtue, and pay their homage where they ought not.

As to the third particular, "the support of civil government"— few words will be sufficient. Every man of the least understanding must know, that the executive power may be exercised in a manner so disagreeable and harassing to the people, that it is absolutely requisite, that *they* should be enabled by the gentlest method which human policy has yet been ingenious enough to invent, that is, by *shutting their hands,* to "ADMONISH" (as Mr. *Hume* says) certain persons "OF THEIR DUTY."

What shall we now think when, upon looking into the late act, we find the assemblies of these provinces thereby stripped of their authority *on these several heads?* The *declared* intention of the act is, "that a revenue should be raised IN HIS MAJESTY'S DOMINIONS IN AMERICA, for making a more certain and adequate provision *for defraying the charge of* THE ADMINISTRATION OF JUSTICE, and *the support of* CIVIL GOVERNMENT in such provinces where it shall be found necessary, and *toward further defraying the expenses of* DEFENDING, PROTECTING AND SECURING THE SAID DOMINIONS."

Let the reader pause here one moment—and reflect—whether the colony in which *he* lives, has not made such "certain and adequate provision" *for these purposes,* as is *by the colony judged suitable to its abilities, and all other circumstances.* Then let him reflect—whether if this act takes place, money is not to be raised on *that* colony *without its consent,* to make "provision" *for these purposes,* which *it does not judge to be suitable to its abilities, and all other circumstances.* Lastly, let him reflect—whether the people of that country are not in a state of the most abject slavery, *whose property may be taken from them* under the notion of right, *when they have refused to give it.*

For my part, I think I have good reason for vindicating the honor of the assemblies on this continent, by publicly asserting, that THEY *have made as "certain and adequate provision" for the purposes above mentioned, as they ought to have made,* and that it should not be presumed, that they will not do it hereafter. Why then should *these most important trusts* be wrested out of their hands? Why should they not now be permitted to enjoy that authority, which they have exercised from the first settlement of these colonies? Why should they be scandalized by this innovation, when their respective provinces are now, and will be, for several years, laboring under loads of debt, imposed on them for the very purpose now spoken of? Why should all the inhabitants of these colonies be, with the utmost indignity, treated as a herd of despicable stupid wretches, so utterly void of common sense, that they will not even make "adequate provision" for the "administration of justice, and the support of civil government" among them, or for their own "defense"—though without such "provision" every

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people must inevitably be overwhelmed with anarchy and destruction? Is it possible to form an idea of a slavery more *complete,* more *miserable,* more *disgraceful,* than that of a people, where *justice is administered, government exercised,* and a *standing army maintained,* AT THE EXPENSE OF THE PEOPLE, and yet WITHOUT THE LEAST DEPENDENCE UPON THEM? If we can find no relief from this infamous situation, it will be fortunate for us, if Mr. *Greenville,* setting his fertile fancy again at work, can, as by one exertion of it he has stripped us of our *property* and *liberty,* by another deprive us of so much of our *understanding;* that, unconscious of what we *have been* or *are,* and ungoaded by tormenting reflections, we may bow down our necks, with all the stupid serenity of servitude, to any drudgery, which our lords and masters shall please to command.

When the charges of the "administration of justice," the "support of civil government," and the "expenses of defending, protecting and securing" us, are provided for, I should be glad to know, upon *what occasions* the crown will ever call our assemblies together? Some few of them may meet of their own accord, by virtue of their charters. But what will they have to do, when they are met? To what shadows will they be reduced? The men, whose deliberations heretofore had an influence on every matter relating to the *liberty* and *happiness* of themselves and their constituents, and whose authority in domestic affairs at least, might well be compared to that of *Roman* senators, will *now* find their deliberations of no more consequence, than those of *constables.* They may *perhaps* be allowed to make laws *for the yoking of hogs,* or *pounding of stray cattle.* Their influence will hardly be permitted to extend *so high,* as the *keeping roads in repair,* as *that business* may more properly be executed by those who receive the public cash.

One most memorable example in history is so applicable to the point now insisted on, that it will form a just conclusion of the observations that have been made.

Spain was once *free.* Their *cortes* resembled our parliaments. No *money* could be raised on the subject, *without their consent.* One of their Kings having received a grant from them, to maintain a war against the *Moors,* desired, that if the sum which they had given, should not be sufficient, he might be allowed, *for that emergency only,* to raise more money *without assembling the Cortes.* The request was violently opposed by the best and wisest men in the assembly. It was, however, complied with by the votes of a majority; and this single concession was a PRECEDENT for other concessions of the like kind, until at last the crown obtained a general power of raising money, in cases of necessity. From that period the *Cortes* ceased to be *useful*—the *people* ceased to be *free.*

Venienti occurrite morbo.
Oppose a disease at its beginning.
A Farmer

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Declaration and Resolves of the First Continental Congress

October 14, 1774

Americans responded to the Townshend Acts as they had responded to the Stamp Act—with declarations of grievances and through boycotts and occasional violence. But Parliament's reaction was significantly harsher than it had been during the Stamp Act crisis, particularly after the Boston Tea Party in 1773 resulted in the destruction of tea belonging to the East India Company. That year, Parliament passed the Coercive Acts, closing ports, extending military justice, closing local legislatures, and giving increased power to royal authorities acting in the colonies. Colonists responded, in turn, through more violence and through the calling of a Continental Congress, much like the Stamp Act Congress, bringing various colonial representatives together to express opposition and plan common strategies. The Declaration and Resolves of this Congress states colonial grievances and calls for a restoration of comity through repeal of Parliament's arbitrary actions.

Declaration and Resolves of the First Continental Congress

Whereas, since the close of the last war, the British parliament, claiming a power of right to bind the people of America by statute in all cases whatsoever, hath, in some acts expressly imposed taxes on them, and in others, under various pretenses, but in fact for the purpose of raising a revenue, hath imposed rates and duties payable in these colonies, established a board of commissioners with unconstitutional powers, and extended the jurisdiction of courts of Admiralty not only for collecting the said duties, but for the trial of causes merely arising within the body of a county.

And whereas, in consequence of other statutes, judges who before held only estates at will in their offices, have been made dependent on the Crown alone for their salaries, and standing armies kept in times of peace. And it has lately been resolved in Parliament, that by force of a statute made in the thirty-fifth year of the reign of King Henry the Eighth, colonists may be transported to England, and tried there upon accusations for treasons and misprisions, or concealments of treasons committed in the colonies; and by a late statute, such trials have been directed in cases therein mentioned:

And whereas, in the last session of Parliament, three statutes were made . . . [the Boston Port Act, the Massachusetts Government Act, the Administration of Justice Act], and another statute was then made [the Quebec Act] . . . All which statutes are impolitic, unjust, and cruel, as well as unconstitutional, and most dangerous and destructive of American rights.

And whereas, Assemblies have been frequently dissolved, contrary to the rights of the people, when they attempted to deliberate on grievances; and their dutiful, humble, loyal, & reasonable petitions to the crown for redress, have been repeatedly treated with contempt, by His Majesty's ministers of state:

The good people of the several Colonies of New-hampshire, Massachusetts-bay, Rhode-island and Providence plantations, Connecticut, New-York, New-Jersey, Pennsylvania, Newcastle, Kent and Sussex on Delaware, Maryland, Virginia, North-Carolina, and South-Carolina, justly alarmed at these arbitrary proceedings of parliament and administration, have severally elected, constituted, and appointed deputies to meet, and sit in general Congress, in the city of Philadelphia, in order to obtain such establishment, as that their religion, laws, and liberties, may not be subverted:

Whereupon the deputies so appointed being now assembled, in a full and free representation of these Colonies, taking into their most serious consideration the best means of attaining the ends aforesaid, do in the first place, as Englishmen their ancestors in like cases have usually done, for asserting and vindicating their rights and liberties, declare,

That the inhabitants of the English Colonies in North America, by the immutable laws of nature, the principles

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of the English constitution, and the several charters or compacts, have the following Rights:

Resolved, N. C. D.

1. That they are entitled to life, liberty, and property, & they have never ceded to any sovereign power whatever, a right to dispose of either without their consent.

2. That our ancestors, who first settled these colonies, were at the time of their emigration from the mother country, entitled to all the rights, liberties, and immunities of free and natural-born subjects within the realm of England.

3. That by such emigration they by no means forfeited, surrendered, or lost any of those rights, but that they were, and their descendants now are entitled to the exercise and enjoyment of all such of them, as their local and other circumstances enable them to exercise and enjoy.

4. That the foundation of English liberty, and of all free government, is a right in the people to participate in their legislative council: and as the English colonists are not represented, and from their local and other circumstances, cannot properly be represented in the British parliament, they are entitled to a free and exclusive power of legislation in their several provincial legislatures, where their right of representation can alone be preserved, in all cases of taxation and internal polity, subject only to the negative of their sovereign, in such manner as has been heretofore used and accustomed. But, from the necessity of the case, and a regard to the mutual interest of both countries, we cheerfully consent to the operation of such acts of the British parliament, as are bona fide restrained to the regulation of our external commerce, for the purpose of securing the commercial advantages of the whole empire to the mother country, and the commercial benefits of its respective members excluding every idea of taxation, internal or external, for raising a revenue on the subjects in America without their consent.

5. That the respective colonies are entitled to the common law of England, and more especially to the great and inestimable privilege of being tried by their peers of the vicinage, according to the course of that law.

6. That they are entitled to the benefit of such of the English statutes, as existed at the time of their colonization; and which they have, by experience, respectively found to be applicable to their several local and other circumstances.

7. That these, his majesty's colonies, are likewise entitled to all the immunities and privileges granted and confirmed to them by royal charters, or secured by their several codes of provincial laws.

8. That they have a right peaceably to assemble, consider of their grievances, and petition the King; and that all prosecutions, prohibitory proclamations, and commitments for the same, are illegal.

9. That the keeping a Standing army in these colonies, in times of peace, without the consent of the legislature of that colony in which such army is kept, is against law.

10. It is indispensably necessary to good government, and rendered essential by the English constitution, that the constituent branches of the legislature be independent of each other; that, therefore, the exercise of legislative power in several colonies, by a council appointed during pleasure, by the crown, is unconstitutional, dangerous, and destructive to the freedom of American legislation.

All and each of which the aforesaid deputies, in behalf of themselves, and their constituents, do claim, demand, and insist on, as their indubitable rights and liberties; which cannot be legally taken from them, altered or abridged by any power whatever, without their own consent, by their representatives in their several provincial legislatures.

In the course of our inquiry, we find many infringements and violations of the foregoing rights, which, from an ardent desire that harmony and mutual intercourse of affection and interest may be restored, we pass over for the present, and proceed to state such acts and measures as have been adopted since the last war, which demonstrate a system formed to enslave America.

Resolved, That the following acts of Parliament are infringements and violations of the rights of the colonists; and that the repeal of them is essentially necessary, in order to restore harmony between Great Britain and the American colonies, . . . viz.:

The several Acts of 4 Geo. 3, ch. 15 & ch. 34, 5 Geo. 3, ch. 25; 6 Geo. 3, ch. 52; 7 Geo. 3, ch. 41 & 46; 8 Geo. 3, ch. 22; which impose duties for the purpose of raising a revenue in America, extend the powers of the admiralty courts beyond their ancient limits, deprive the American subject of trial by jury, authorize the judges' certificate to indemnify the prosecutor from damages that he might otherwise be liable to, requiring oppressive security from a claimant of ships and goods seized before he shall be allowed to defend his property; and are subversive of American rights.

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Also the 12 Geo. 3, ch. 24, entitled "An act for the better preserving his Majesty's dockyards, magazines, ships, ammunition, and stores," which declares a new offense in America, and deprives the American subject of a constitutional trial by jury of the vicinage, by authorizing the trial of any person charged with the committing any offense described in the said act, out of the realm, to be indicted and tried for the same in any shire or county within the realm.

Also the three acts passed in the last session of parliament, for stopping the port and blocking up the harbour of Boston, for altering the charter & government of the Massachusetts-bay, and that which is entitled "An Act for the better administration of Justice," &c.

Also the act passed the same session for establishing the Roman Catholic Religion in the province of Quebec, abolishing the equitable system of English laws, and erecting a tyranny there, to the great danger, from so great a dissimilarity of Religion, law, and government, of the neighboring British colonies. . . .

Also the act passed the same session for the better providing suitable quarters for officers and soldiers in his Majesty's service in North America.

Also, that the keeping a standing army in several of these colonies, in time of peace, without the consent of the legislature of that colony in which the army is kept, is against law.

To these grievous acts and measures Americans cannot submit, but in hopes that their fellow subjects in Great-Britain will, on a revision of them, restore us to that state in which both countries found happiness and prosperity, we have for the present only resolved to pursue the following peaceable measures: 1st. To enter into a non-importation, non-consumption, and non-exportation agreement or association. 2. To prepare an address to the people of Great-Britain, and a memorial to the inhabitants of British America, & 3. To prepare a loyal address to his Majesty, agreeable to resolutions already entered into.

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Virginia Bill of Rights

June 12, 1776

Opposition to Britain in the colonial legislatures was intense. The Bill of Rights passed by the Virginia House of Burgesses presents arguments foreshadowing the soon-to-be-issued Declaration of Independence, asserting colonists' equality with all other British subjects and calling on Parliament to recognize their inalienable rights.

Virginia Bill of Rights

A Declaration of Rights

Made by the Representatives of the good People of Virginia, assembled in full and free Convention, which rights to pertain to them and their posterity as the basis and foundation of government.

I. That all men are by nature equally free and independent, and have certain inherent rights, of which, when they enter into a state of society, they cannot by any compact, deprive or divest their posterity; namely, the enjoyment of life and liberty with the means of acquiring and possessing property, and pursuing and obtaining happiness and safety.

II. That all power is vested in, and consequently derived from, the people; that magistrates are their trustees and servants, and at all times amendable to them.

III. That government is, or ought to be, instituted for the common benefit, protection and security of the people, nation, or community; of all the various modes and forms of government, that is best which is capable of producing the greatest degree of happiness and safety, and is most effectually secured against the danger of maladministration; and that, when a government shall be found inadequate or contrary to these purposes, a majority of the community hath an indubitable, unalienable and indefeasible right to reform, alter or abolish it, in such manner as shall be judged most conducive to the public weal.

IV. That no man, or set of men, are entitled to exclusive or separate emoluments or privileges from the community but in consideration of public services, which not being descendible, neither ought the offices of magistrate, legislator, or judge to be hereditary.

V. That the legislative, executive and judicial powers should be separate and distinct; and that the members thereof may be restrained from oppression, by feeling and participating the burdens of the people, they should, at fixed periods, be reduced to a private station, return into that body from which they were originally taken, and the vacancies be supplied by frequent, certain and regular elections, in which all, or any part of the former members to be again eligible or ineligible, as the laws shall direct.

VI. That all elections ought to be free, and that all men having sufficient evidence of permanent common interest with, and attachment to the community have the right of suffrage, and cannot be taxed, or deprived of their property for public uses, without their own consent, or that of their representatives so elected, nor bound by any law to which they have not in like manner assented, for the public good.

VII. That all power of suspending laws, or the execution of laws, by any authority, without consent of the representatives of the people, is injurious to their rights, and ought not to be exercised.

VIII. That in all capital or criminal prosecutions, a man hath a right to demand the cause and nature of his accusation, to be confronted with the accusers and witnesses, to call for evidence in his favor, and to speedy trial by an impartial jury of twelve men of his vicinage, without whose unanimous consent he cannot be found guilty; nor can he be compelled to give evidence against himself; that no man be deprived of his liberty, except by the law of the land or the judgment of his peers.

IX. That excessive bail ought not to be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

X. That general warrants, whereby an officer or messenger may be commanded to search suspected places without evidence of a fact committed, or to seize any person or persons not named, or whose offence is not particularly

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described and supported by evidence, are grievous and oppressive, and ought not to be granted.

XI. That in controversies respecting property, and in suits between man and man, the ancient trial by jury of twelve men is preferable to any other, and ought to be held sacred.

XII. That the freedom of the press is one of the great bulwarks of liberty, and can never be restrained but by despotic governments.

XIII. That a well regulated militia, composed of the body of the people, trained to arms, is the proper, natural, and safe defence of a free State; that standing armies in time of peace should be avoided as dangerous to liberty; and that in all cases the military should be under strict subordination to, and governed by, the civil power.

XIV. That the people have a right to uniform government; and therefore, that no government separate from or independent of the government of Virginia, ought to be erected or established within the limits thereof.

XV. That no free government, or the blessing of liberty, can be preserved to any people, but by a firm adherence to justice, moderation, temperance, frugality and virtue, and by a frequent recurrence to fundamental principles.

XVI. That religion, or the duty which we owe to our Creator, and the manner of discharging it, can be directed only by reason and conviction, not by force or violence; and therefore all men are equally entitled to the free exercise of religion, according to the dictates of conscience; and that it is the duty of all to practice Christian forbearance, love and charity towards each other.

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On Civil Liberty, Passive Obedience, and Non-resistance

JONATHAN BOUCHER

1775

Jonathan Boucher (1738–1804) was an Episcopal minister and tutor to, among others, the stepson of George Washington. A loyalist, or "Tory," who believed the colonists had no right to rebel against the acts of Parliament, Boucher preached non-resistance to an increasingly hostile audience until 1775 when, fearing for his life, he returned to England. In 1797, he published thirteen of his sermons against colonial resistance under the title *A View of the Causes and Consequences of the American Revolution.* The sermon reprinted here, the twelfth in the series, was given as an answer to a 1775 sermon preached on the same subjects and biblical texts by a Reverend Duché.

On Civil Liberty, Passive Obedience, and Non-resistance*

Galatians, ch. v. ver. 1
Stand fast, therefore, in the liberty wherewith Christ hath made us free.

It is not without much sincere concern that I find myself thus again constrained to animadvert on the published opinions of another Clergyman, of great worth and amiableness of character—a Clergyman whom I have the pleasure to know, and who, I believe, is not more generally known than he is beloved. If his opinions had been confined to points of little moment, and on which even mistakes could have done no great harm, I could have been well contented to have let this pass down the stream of time, with a long list of similar patriotic publications, without any animadversions of mine. But if what he has published, even with good intentions, be, as I think it clearly is, of a pernicious and dangerous tendency, (and the more so, perhaps, from it's being delivered in the form of a sermon,) I owe no apology either to him, or to any man, for thus endeavouring to furnish you with an antidote to the poison which has been so industriously dispersed among you.

To have become noted either as a political writer or preacher, as some (who at least are unacquainted with my preaching) are pleased to tell you I now am, is a circumstance that gives me no pleasure. I was sorry to hear the observation; not (I thank God!) from any consciousness of my having ever written or preached any thing, of which (at least in point of principle) I have reason to be ashamed; but because it is painful to reflect, that it should have fallen to my lot to live in times, and in a country, in which such subjects demand the attention of every man. Convinced in my judgment that it is my duty to take the part which I have taken, though I cannot but lament it's not having produced all the beneficial consequences which I fondly flattered myself it might, I dare not allow myself to discontinue it. The time, I know, has been, when addresses of this sort from English pulpits were much more frequent than they now are. Even now, however, they are not wholly discontinued: sermons on political topics, on certain stated days, are still preached, and with the authority of Government. This is mentioned to obviate a charge, that I am singular in continuing this practice; as it proves that such preaching is not yet proscribed from our pulpits. That a change, indeed, in this respect, as well in the principles as in the conduct of modern preachers, has taken place among us, is readily confessed: but that it is a change for the better, has no where yet been proved. A comparison of the 30th of January sermons of the present times, with those of our older Divines, might suggest many not uninteresting reflections: but as it is no part of my purpose to seat myself in a censorial chair, I enter not into the disquisition; but shall content myself with cursorily observing, that if the

*Preached in the parish of Queen Anne, in Maryland: in answer to a Sermon, on the same text and same subjects, by the Rev. Mr. Duché, preached and printed in Philadelphia in 1775.

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political sermons of the present day be more popular than those of our predecessors, it is owing, too probably, to their being also more frivolous (not to say more unsound, and less learned) than such compositions used to be.

But, without being influenced by the principles or the practices of other preachers, I must, for myself, be permitted to think it incumbent on me to watch and attend to circumstances as they arise; such, more especially, as nearly concern the welfare of the people committed to my charge. In any such politics as do not touch the conscience, nor trench upon duty, I hope I neither feel nor take more interest than mankind in general do: but there is a sense in which politics, properly understood, form an essential branch of Christian duty. These politics take in a very principal part, if not the whole, of the second table of the Decalogue, which contains our duty to our neighbour.

It is from this second table that the compilers of our Catechism have very properly deduced the great duty of *honouring and obeying the king, and all that are put in authority under him.* Reverently to submit ourselves to *all our governors, teachers, spiritual pastors, and masters,* is indeed a duty so essential to the peace and happiness of the world, that St. Paul thinks no Christian could be ignorant of it: and therefore, when he recommends it to Titus as a topic on which he should not fail frequently to insist, he supposes it would be sufficient if his converts were *put in mind to be subject to principalities and powers, to obey magistrates, and to be ready to every good work.* This, however, is as direct and clear a commission for a Christian minister's preaching on politics, in the just sense of the word, on all proper occasions, as can be produced for our preaching at all on any subject. Let me hope, then, that I now stand sufficiently vindicated as a preacher of politics (if such an one I am to be deemed) by having proved, that, in thus preaching, I do no more than St. Paul enjoined: all I pretend to, all I aim at, is to *put you in mind* only of your *duty to your neighbour**.

*A very vehement protest against political sermons in general has lately been delivered by a person of great eminence in the political world, which (though aimed perhaps only at one individual Divine, yet being general, and, as such, equally affecting the loyal and the disloyal preacher) it would be unpardonable in the writer of a volume of political sermons to pass over wholly without notice.

. . . "Politics and the pulpit are terms that have little agreement. No sound ought to be heard in the church, but the healing voice of Christian charity. The cause of Civil Liberty and Civil Government gains as little as that of Religion by this confusion of duties. Those who quit their proper character, to assume what does not belong to them, are, for the greater part, ignorant both of the character they leave, and of the character they assume. Wholly unacquainted with the world, in which they are so fond of meddling, and inexperienced in all it's affairs, on which they pronounce with so much confidence, they have nothing of politics but the passions they excite. Surely the church is a place where one day's truce ought to be allowed to the dissensions and animosities of mankind."—Reflections on the Revolution in France, p. 14.

The whole force of this striking passage seems to rest on the term *politics* being understood in it's vague and vulgar acceptation, and merely as referring to the wrangling debates of modern assemblies; debates which, far too often, turn entirely on the narrow, selfish and servile views of party. The term has been, and in such a disquisition ought to have been, used in a much more extended and more dignified sense; comprehending all that long list of duties which every man owes to society in it's public capacity. Every man is at least as much concerned to be a good subject, as he is to be a good neighbour: and so far is a preacher from being chargeable with being guilty of "a confusion of duties," or of "assuming a character which does not belong to him," that he acts strictly within the line of his profession, when he explains, as well as he is able, and enforces on the people committed to his care, their public as well as their private duties. Such politics are, literally, the "healing voice of Christian charity."

For weak and wicked politics, whether in or out of the pulpit, no plea is here offered: I would humbly suggest only, that, as the Clergy are far from claiming to be more enlightened than others on these topics, there seems to be no reason for supposing that they are less so. Their "unacquaintance with the world, and inexperience in all it's affairs," even admitting the fact, cannot fairly be esteemed a disadvantage to them: and their habits of study and reflection are certainly in their favour. So far have English Divines in general been from giving any countenance to "the dissensions and animosities of mankind," that in their writings chiefly (which form a large portion of English literature) are any effectual checks to these foul passions to be found: and so little, in general, have they merited the character of being "ignorant," either as Divines or Politicians, that men of the first-rate abilities might easily be named, who have distinguished themselves in both capacities. Who is he that will take upon him to say, that the late Dean of St. Patrick's, or the present Dean of Gloucester, were either unlearned Divines, or shallow Politicians?

The peremptory tone with which we of the Clergy are so often interdicted from meddling with politics in our pulpits, has long appeared to me to be more dictatorial than, as the free subjects of a free government, it is incumbent on us to bear. We, surely, are not less at liberty than other men to use our own discretion: nor can it, I bless God! with any shew of justice, be objected to the Clergy of the Church of England, that they have ever in general either preached or written any such politics as are hostile to the interests either of good government or good men.

This is not the first time that Statesmen have shewn an unaccountable jealousy of the Clergy's interfering in political disquisitions. At the

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ious to *speak right,* than *smooth things,* are now hardly less numerous among us, in proportion to our population, than such men were among the puritans in the last century: and their discourses are not only preached, but published, "at the request of battalions, generals, and commanders in chief." But, wo unto that people who studiously place temptations in the way of the ministers of God to *handle the word of God deceitfully!* and wo unto those ministers who are thus tempted to *cause the people to err, by their lies and their lightness!*

Let me humbly hope, then, that, whilst I thus continue to plead in behalf of Government, I may continue to experience the same indulgence which those persons do who speak against it. The ground I have taken, I am aware, is deemed untenable; but, having now just gone over that ground with great care, I feel a becoming confidence that I shall not easily be driven from it. The same diligence, the same plain honest course of proceeding which I have taken, will, I trust, produce the same effects with all of you, who, not being yet absorbed within the vortex of party, are still happy in the possession of minds open to conviction. With no others do I presume to argue. That I am persevering in the pursuit of this unpopular course, I readily own; yet I feel I want spirits to enter on any such discussions with those persons among us, who, settling controverted points with their hands rather than with their tongues, demonstrate with tar and feathers, fetch arguments from prisons, and confute by confiscation and exile.

To find out the true and precise meaning of any passage of Scripture, it is in general necessary to know the circumstances of the writer, and his end and aim in writing. St. Paul, the author of my text, was deeply involved in that very natural but perplexing dispute which soon arose among the first converts, and even among the Disciples, concerning the observance of the ritual services; and how far they were, or were not, obligatory on Christians. There are few of his writings, in some part or other of which this great question does not come forward. It evidently runs through the whole of this epistle to the Galatians, as well as through this particular verse.

The Jewish zealots (like their ancestors in the wilderness, who ever and anon murmured for want of the flesh-pots in Egypt) were perpetually troubling the infant church on the subject of this question. It became our Apostle, then, diligently to labour after the removal of this difficulty. This he undertakes to do; and very satisfactorily obviates the difficulty by a comparison of the two dispensations, the former of which he proves to have been *a yoke of bondage* when put in competition with that perfect *law of liberty* now promulged to the world. The law of Moses was no doubt well contrived and adapted to the singular circumstances of the people to whom it was given; yet, when a revelation still better adapted to the general circumstances of mankind was made known, it was a most unaccountable instance of folly and perverseness in that people to wish to be again *entangled* in a yoke which neither they nor their forefathers were well able to bear. Emancipated as they now were from so burthensome a service, it was to act the part of madmen still to hug their chains.

Freely offered, however, as the Gospel of uncircumcision now was *to the Jew first and also to the Gentile,* it behoved the latter also (who, as well as their brethren of the law, were *called unto liberty*) *to stand fast.* It is true they were not, as the Jews were, *made free* from the servile observance of *days, and months, and times, and years;* to which they had never been subjected. But there was another kind of subjection or slavery, not less oppressive, from which they were now released; I mean the slavery of sin. Heretofore they were *the servants of sin;* but now, they were *no more servants, but sons; and if sons, then heirs of God through Christ.* Admitted to this blessed privilege, and no longer the children of Hagar and of Ishmael, but of Sarah and of Isaac, the exhortation is with great propriety addressed to them also: *Stand fast in the liberty wherewith Christ hath made you free.*

As the liberty here spoken of respected the Jews, it denoted an exemption from the burthensome services of the ceremonial law: as it respected the Gentiles, it meant a manumission from bondage under the *weak and beggarly elements of the world,* and an admission into the covenant of grace: and as it respected both in common, it meant a freedom from the servitude of sin. Every sinner is, literally, a slave; for, *his servants ye are, to whom ye obey:*—and the only true liberty is the liberty of being the servants of God;

accession of the present Family, wishing to discountenance all investigations of their title to the throne, and most afraid of the Clergy, it is said, some eminent infidel writers were employed and paid by Government expressly to write against religion, not because the King's ministers either disbelieved or disliked religion, but because they thought it the most likely means to draw the attention of the Clergy off from politics, and in confidence that their answers would be a sufficient antidote to the poison of the infidels. It is believed that, in the public offices, proofs might be obtained of individuals receiving pensions for writing both against and for religion.

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for, *his service is perfect freedom.* The passage cannot, without infinite perversion and torture, be made to refer to any other kind of liberty; much less to that liberty of which every man now talks, though few understand it. However common this term has been, or is, in the mouths chiefly of those persons who are as little distinguished for the accuracy as they are for the paucity of their words; and whatever influence it has had on the affairs of the world, it is remarkable that it is never used (at least not in any such sense as it is elsewhere used) in any of the laws either of God or men. Let a minister of God, then, stand excused if (taught by him who knoweth what is fit and good for us better than we ourselves, and is *wont also to give us more than either we desire or deserve*) he seeks not to amuse you by any flowery panegyrics on liberty. Such panegyrics are the productions of ancient heathens and modern patriots: nothing of the kind is to be met with in the Bible, nor in the Statute Book. The word *liberty,* as meaning civil liberty, does not, I believe, occur in all the Scriptures. With the aid of a concordance I find only two or three passages, in two apocryphal writers, that look at all like it. In the xivth chapter and 26th verse of the 1st of Maccabees, the people are said to owe much gratitude to Simon, the high-priest, for having renewed a friendship and league with the Lacedemonians, confirmed the league with the Romans, established Israel, and *confirmed their liberty.* But it is evident that this expression means, not that the Jews were then to be exempted from any injunctions, or any restraints, imposed upon them by their own lawful government; but only that they were delivered from a foreign jurisdiction and from tributary payments, and left free to live under the law of Moses. The only circumstance relative to government, for which the Scriptures seem to be particularly solicitous, is in inculcating obedience to lawful governors, as well knowing where the true danger lies. Nevertheless, as occasion has lately been taken from this text, on which I am now to discourse, to treat largely on civil liberty and government, (though for no other reason that appears but that the word *liberty* happens to stand in the text,) I entreat your indulgence, whilst, without too nicely scrutinizing the propriety of deducing from a text a doctrine which it clearly does not suggest, I once more adopt a plan already chalked out for me, and deliver to you what occurs to me as proper for a Christian audience to attend to on the subject of Liberty.

It has just been observed, that the liberty inculcated in the Scriptures, (and which alone the Apostle had in view in this text,) is wholly of the spiritual or religious kind. This liberty was the natural result of the new religion in which mankind were then instructed; which certainly gave them no new civil privileges. They remained subject to the governments under which they lived, just as they had been before they became Christians, and just as others were who never became Christians; with this difference only, that the duty of submission and obedience to Government was enjoined on the converts to Christianity with new and stronger sanctions. The doctrines of the Gospel make no manner of alteration in the nature or form of Civil Government; but enforce afresh, upon all Christians, that obedience which is due to the respective Constitutions of every nation in which they may happen to live. Be the supreme power lodged in one or in many, be the kind of government established in any country absolute or limited, this is not the concern of the Gospel. It's single object, with respect to these public duties, is to enjoin obedience to the laws of every country, in every kind or form of government.

The only liberty or freedom which converts to Christianity could hope to gain by becoming Christians, was the being exempted from sundry burthensome and servile Jewish ordinances, on the one hand; and, on the other, from Gentile blindness and superstition. They were also in some measure perhaps made more *free* in the *inner man;* by being endowed with greater firmness of mind in the cause of truth, against the terrors and the allurements of the world; and with such additional strength and vigour as enabled them more effectually to resist the natural violence of their lusts and passions. On all these accounts it was that our Saviour so emphatically told the Jews, that *the truth* (of which himself was now the preacher) would *make them* free*. And on the same principle St. James terms the Gospel *the perfect law of liberty.*

In the infancy of Christianity, it would seem that some rumour had been spread (probably by Judas of Galilee, who is mentioned in the Acts†) that the Gospel was designed to undermine kingdoms and commonwealths; as if the intention of our Saviour's first coming had been the same with that which is reserved for the second, viz. to *put down all rule, and all authority, and all power.* On this supposition the apparent solicitude of our Saviour and his

*John, ch. viii. ver. 32.
†Ch. v. ver. 37.

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Apostles, in their frequent and earnest recommendation of submission to *the higher powers,* is easily and naturally accounted for. Obedience to Government is every man's duty, because it is every man's interest: but it is particularly incumbent on Christians, because (in addition to it's moral fitness) it is enjoined by the positive commands of God: and therefore, when Christians are disobedient to human ordinances, they are also disobedient to God. If the form of government under which the good providence of God has been pleased to place us be mild and free, it is our duty to enjoy it with gratitude and with thankfulness; and, in particular, to be careful not to abuse it by licentiousness. If it be less indulgent and less liberal than in reason it ought to be, still it is our duty not to disturb and destroy the peace of the community, by becoming refractory and rebellious subjects, and *resisting the ordinances of God.* However humiliating such acquiescence may seem to men of warm and eager minds, the wisdom of God in having made it our duty is manifest. For, as it is the natural temper and bias of the human mind to be impatient under restraint, it was wise and merciful in the blessed Author of our religion not to add any new impulse to the natural force of this prevailing propensity, but, with the whole weight of his authority, altogether to discountenance every tendency to disobedience.

If it were necessary to vindicate the Scriptures for this their total unconcern about a principle which for many other writings seem to regard as the first of all human considerations, it might be observed, that, avoiding the vague and declamatory manner of such writings, and avoiding also the useless and impracticable subtleties of metaphysical definitions, these Scriptures have better consulted the great general interests of mankind, by summarily recommending and enjoining a conscientious reverence for law whether human or divine. To respect the laws, is to respect liberty in the only rational sense in which the term can be used; for liberty consists in a subserviency to law*. "Where there is no law," says Mr. Locke, "there is no freedom." The mere man of nature (if such an one there ever was) has no freedom: *all his lifetime he is subject to bondage.* It is by being included within the pale of civil polity and government that he takes his rank in society as a free man.

Hence it follows, that we are free, or otherwise, as we are governed by law, or by the mere arbitrary will, or wills, of any individual, or any number of individuals. And liberty is not the setting at nought and despising established laws —much less the making our own wills the rule of our own actions, or the actions of others—and not bearing (whilst yet we dictate to others) the being dictated to, even by the laws of the land; but it is the being governed by law, and by law only. The Greeks described Eleutheria, or Liberty, as the daughter of Jupiter, the supreme fountain of power and law. And the Romans, in like manner, always drew her with the pretor's wand, (the emblem of legal power and authority,) as well as with the cap. Their idea, no doubt, was, that liberty was the fair fruit of just authority, and that it consisted in men's being subjected to law. The more carefully well-devised restraints of law are enacted, and the more rigorously they are executed in any country, the greater degree of civil liberty does that country enjoy. To pursue liberty, then, in a manner not warranted by law, whatever the pretence may be, is clearly to be hostile to liberty: and those persons who thus *promise you liberty,* are themselves *the servants of corruption.*

"Civil liberty (says an excellent writer†) is a severe and a restrained thing; implies, in the notion of it, authority, settled subordinations, subjection, and obedience; and is altogether as much hurt by too little of this kind, as by too much of it. And the love of liberty, when it is indeed the love of liberty, which carries us to withstand tyranny, will as much carry us to reverence authority, and to support it; for this most obvious reason, that one is as necessary to the being of liberty, as the other is destructive of it. And, therefore, the love of liberty which does not produce this effect, the love of liberty which is not a real principle of dutiful behaviour towards authority, is as hypocritical as the religion which is not productive of a good life. Licentiousness is, in truth, such an excess of liberty as is of the same nature with tyranny. For, what is the difference betwixt them, but that one is lawless power exercised under pretence of authority, or by persons vested with it; the other, lawless

*. . . . "Multo esse indignius in eâ civitate, quae legibus teneatur, discedi à legibus: hoc enim vinculum est hujus dignitatis quâ fruimur in republicâ; *hoc fundamentum libertatis;* hic fons aequitatis. Mens et animus, et sententia civitatis posita est in legibus. Ut corpora nostra sine mente, sic civitas sine lege, suis partibus, ut nervis, ac sanguine et membris uti non potest. Legum ministri, mâgistratus; legum interpretes, judices; legum denique idcirco omnes servi sumus, ut liberi esse possimus." —Cicero Orat. pro A. Cluentio. sect. 53.

†Bishop Butler, in his Sermon before the House of Lords, January 30, 1740.

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power exercised under pretence of liberty, or without any pretence at all? A people, then, must always be less free in proportion as they are more licentious; licentiousness being not only different from liberty, but directly contrary to it—a direct breach upon it."

True liberty, then, is a liberty to do every thing that is right, and the being restrained from doing any thing that is wrong. So far from our having a right to do every thing that we please, under a notion of liberty, liberty itself is limited and confined—but limited and confined only by laws which are at the same time both it's foundation and it's support. It can, however, hardly be necessary to inform you, that ideas and notions respecting liberty, very different from these, are daily suggested in the speeches and the writings of the times; and also that some opinions on the subject of government at large, which appear to me to be particularly loose and dangerous, are advanced in the sermon now under consideration; and that, therefore, you will acknowledge the propriety of my bestowing some farther notice on them both.

It is laid down in this sermon, as a settled maxim that the end of government is "the common good of mankind." I am not sure that the position itself is indisputable*; but, if it were, it would by no means follow that, "this common good being matter of common feeling, government must therefore have been instituted by common consent." There is an appearance of logical accuracy and precision in this statement; but it is only an appearance. The position is vague and loose; and the assertion is made without an attempt to prove it. If by men's "common feelings" we are to understand that principle in the human mind called common sense, the assertion is either unmeaning and insignificant, or it is false. In no instance have mankind ever yet agreed as to what is, or is not, "the common good." A form or mode of government cannot be named, which these "common feelings" and "common consent," the sole arbiters, as it seems, of "common good," have not, at one time or another, set up and established, and again pulled down and reprobated. What one people in one age have concurred in establishing as the "common good," another in another age have voted to be mischievous and big with ruin. The premises, therefore, that "the common good is matter of common feeling," being false, the consequence drawn from it, viz. that government was instituted by "common consent," is of course equally false.

This popular notion, that government was originally formed by the consent or by a compact of the people, rests on, and is supported by, another similar notion, not less popular, nor better founded. This other notion is, that the whole human race is born equal; and that no man is natu-

*"This, which is commonly affirmed, that the end of government is *the good of the inferiors,* must be understood *cum grano salis.* For, from this principle, misunderstood, some have collected that because the end is above the means, and more noble, therefore subjects are above their governors; and so may call them to account for their misgovernment, and judge, and punish, and remove them, if they see cause. From which false collections, made by seditious and turbulent persons, infinite troubles, confusions, rebellions, and desolations, have followed. We must know, therefore,

"First, That, to procure the good of inferiors, is indeed the duty of superiors, and one end why God committed the people to them; but not the sole or principal end of their authority. For, princes receive their power only from God; and are by him constituted and entrusted with government of others, chiefly for his own glory and honour, as his deputies and vicegerents upon earth: for, *they are his ministers,* Rom. xiii. So that the principal end of their government is the advancement of God's honour, who is the supreme King and Lord of all the world: and therefore, if they fail in the performance of this trust, they are accountable only to him, who entrusted them; and not to the people, whom he hath put under them, and whom he never authorised to call them to account, but to appeal to him only.

"Secondly, It is not generally true that all government is only for the benefit of those who are governed: for, some government there is merely for the benefit of the superior; as that of a lord or master over his servants."—Bishop Andrews on the Commandments, 1650, folio 331.

The learned Mr. Selden observes of the maxim, *Salus populi suprema lex,* that "there is not any thing in the world more abused. For, we apply it as if we ought to forsake the known laws, when it may be for the advantage of the people so to do: whereas it means no such thing. For, it is not *salus populi suprema lex est,* but ESTO; it being one of the twelve tables. And after divers laws made, some for punishment, and some for reward, then follows this, i.e. *In all the laws you make, have a special eye to the good of the people.*"—Table Talk, p. 40.

That most famous casuist, Bishop Sanderson, also says, "There is no man will deny, that *the safety of the people,* i.e. of the whole community, as that word comprehends the king together with the subjects, *is the supreme law.* But, that *the safety of the people,* i.e. of the subjects, the king being excluded, is *the supreme law,* there is no man will affirm it, unless he be a fool, or an impostor; a fool, if he doth believe what he himself saith—and an impostor, if he doth not believe it. But, if any man will seriously look into the original of this aphorism, I do believe he will easily grant that it ought more precisely to be understood of the safety of the prince, than of the safety of the subjects. This saying came to us from the Romans, and was then used by them when their republic did flourish most of all under a popular state. And there is no wonder that *the people's safety* was *the supreme law* with them, with whom the people themselves were the supreme power. In the judgment, therefore, of those wise ancients, who were the first authors of this aphorism, *the safety of the people* was the *supreme law* of the people in a democracy, but of the king in a monarchy."—Cases of Conscience, Lecture the 9th, § xvii. p. 330. edit. 1660.

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rally inferior, or, in any respect, subjected to another; and that he can be made subject to another only by his own consent. The position is equally ill-founded and false both in it's premises and conclusions. In hardly any sense that can be imagined is the position strictly true; but, as applied to the case under consideration, it is demonstrably not true. Man differs from man in every thing that can be supposed to lead to supremacy and subjection, *as one star differs from another star in glory.* It was the purpose of the Creator, that man should be social: but, without government, there can be no society; nor, without some relative inferiority and superiority, can there be any government. A musical instrument composed of chords, keys, or pipes, all perfectly equal in size and power, might as well be expected to produce harmony, as a society composed of members all perfectly equal to be productive of order and peace. If (according to the idea of the advocates of this chimerical scheme of equality) no man could rightfully *be compelled to come in* and be a member even of a government to be formed by a regular compact, but by his own individual consent; it clearly follows, from the same principles, that neither could he rightfully be made or compelled to submit to the ordinances of any government already formed, to which he has not individually or actually consented. On the principle of equality, neither his parents, nor even the vote of a majority of the society, (however virtuously and honourably that vote might be obtained,) can have any such authority over any man. Neither can it be maintained that acquiescence implies consent; because acquiescence may have been extorted from impotence or incapacity. Even an explicit consent can bind a man no longer than he chooses to be bound. The same principle of equality that exempts him from being governed without his own consent, clearly entitles him to recall and resume that consent whenever he sees fit; and he alone has a right to judge when and for what reasons it may be resumed.

Any attempt, therefore, to introduce this fantastic system into practice, would reduce the whole business of social life to the wearisome, confused, and useless task of mankind's first expressing, and then withdrawing, their consent to an endless succession of schemes of government. Governments, though always forming, would never be completely formed: for, the majority to-day, might be the minority tomorrow; and, of course, that which is now fixed might and would be soon unfixed. Mr. Locke indeed says, that, "by consenting with others to make one body-politic under government, a man puts himself under an obligation to every one of that society to submit to the determination of the majority, and to be concluded by it." For the sake of the peace of society, it is undoubtedly reasonable and necessary that this should be the case: but, on the principles of the system now under consideration, before Mr. Locke or any of his followers can have authority to say that it actually is the case, it must be stated and proved that every individual man, on entering into the social compact, did first consent, and declare his consent, to be concluded and bound in all cases by the vote of the majority. In making such a declaration, he would certainly consult both his interest and his duty; but at the same time he would also completely relinquish the principle of equality, and eventually subject himself to the possibility of being governed by ignorant and corrupt tyrants*. Mr. Locke himself afterwards disproves his own position respecting this supposed obligation to submit to the "determination of the majority," when he argues that a right of resistance still exists in the governed: for, what is resistance but a recalling and resuming the consent heretofore supposed to have been given, and in fact refusing to submit to the "determination of the majority?" It does not clearly appear what Mr. Locke exactly meant by what he calls "the determination of the majority:" but the only rational and practical public manner of declaring "the determination of the majority," is by law: the laws, therefore, in all countries, even in those that are despotically governed, are to be regarded as the declared "determination of a majority" of the members of that community; because, in such cases, even acquiescence only must be looked upon as equivalent to a declaration. A right of resistance, therefore, for which

*The present government of France, having largely experienced the folly and the danger of being consistent in pursuing this system of equality to it's full extent, have now abandoned it; but so, however, as still to make a shew of it's being retained. They now, very justly, thus define their principle: "L'egalité consiste en ce, que la loi est la même pour tous, soit qu'elle protège, soit qu'elle punisse." Art. 3. Droits. But, after all the pomp and parade they have made about the liberality of their reforms, what is there in this more liberal than all mankind, in all ages, have thought and said, when they drew Justice blind, and balancing her even-poised scales; or indeed more liberal than we find more pointedly expressed in the well-known clause of our own Magna Charta? "Nullus liber homo capiatur, vel imprisonetur, aut dissosietur de libero tenemento suo, vel liberis consuetudinibus suis, aut utlagetur, aut exuletur, aut aliquo alio modo destruatur: nec super eum ibimus, nec super eum mittemus nisi per legale judicium parium suorum, vel per legem terrae. Nulli vendemus, nulli negabimus, aut differemus rectum aut judicium." —Magna Charta, sect. 35.

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Mr. Locke contends, is incompatible with the duty of submitting to the determination of "the majority," for which he also contends.

It is indeed impossible to carry into effect any government which, even by compact, might be framed with this reserved right of resistance. Accordingly there is no record that any such government ever was so formed. If there had, it must have carried the seeds of it's decay in it's very constitution. For, as those men who make a government (certain that they have the power) can have no hesitation to vote that they also have the right to unmake it; and as the people, in all circumstances, but more especially when trained to make and unmake governments, are at least as well disposed to do the latter as the former, it is morally impossible that there should be any thing like permanency or stability in a government so formed. Such a system, therefore, can produce only perpetual dissensions and contests, and bring back mankind to a supposed state of nature; arming every man's hand, like Ishmael's, against every man, and rendering the world an *aceldama,* or field of blood.—Such theories of government seem to give something like plausibility to the notions of those other modern theorists, who regard all governments as invasions of the natural rights of men, usurpations, and tyranny. On this principle it would follow, and could not be denied, that government was indeed fundamentally, as our people are sedulously taught it still is, an evil. Yet it is to government that mankind owe their having, after their fall and corruption, been again reclaimed, from a state of barbarity and war, to the conveniency and the safety of the social state: and it is by means of government that society is still preserved, the weak protected from the strong, and the artless and innocent from the wrongs of proud oppressors. It was not without reason, then, that Mr. Locke asserted, that a greater wrong cannot be done to prince and people, than is done by "propagating wrong notions concerning government."

Ashamed of this shallow device, that government originated in superior strength and violence, another party, hardly less numerous, and certainly not less confident than the former, fondly deduce it from some imaginary compact. They suppose that, in the decline perhaps of some fabulous age of gold, a multitude of human beings, who, like their brother beasts, had hitherto ranged the forests, *without guide, overseer, or ruler*—at length convinced, by experience, of the impossibility of living either alone with any degree of comfort or security, or together in society, with peace, without government, had (in some lucid interval of reason and reflection) met together in a spacious plain, for the express purpose of framing a government. Their first step must have been the transferring to some individual, or individuals, some of those rights which are supposed to have been inherent in each of them: of these it is essential to government that they should be divested; yet can they not, rightfully, be deprived of them, otherwise than by their own consent. Now, admitting this whole supposed assembly to be perfectly equal as to rights, yet all agreed as to the propriety of ceding some of them, on what principles of equality is it possible to determine, either who shall relinquish such a portion of his rights, or who shall be invested with such new accessory rights? By asking another to exercise jurisdiction over me, I clearly confess that I do not think myself his equal; and by his consenting to exercise such authority, he also virtually declares that he thinks himself superior. And, to establish this hypothesis of a compact, it is farther necessary that the whole assembly should concur in this opinion—a concurrence so extremely improbable, that it seems to be barely possible. The supposition that a large concourse of people, in a rude and imperfect state of society, or even a majority of them, should thus rationally and unanimously concur to subject themselves to various restrictions, many of them irksome and unpleasant, and all of them contrary to all their former habits, is to suppose them possessed of more wisdom and virtue than multitudes in any instance in real life have ever shewn. Another difficulty respecting this notion may yet be mentioned. Without a power of life and death, it will, I presume, be readily admitted that there could be no government. Now, admitting it to be possible that men, from motives of public and private utility, may be induced to submit to many heavy penalties, and even to corporal punishment, inflicted by the sentence of the law, there is an insuperable objection to any man's giving to another a power over his life: this objection is, that no man has such a power over his own life; and cannot therefore transfer to another, or to others, be they few or many, on any conditions, a right which he does not himself possess. He only who gave life, can give the authority to take it away: and as such authority is essential to government, this argument seems very decidedly to prove, not only that government did not originate in any compact, but also that it was originally from God*.

*Grotius's definition of the supreme magistrate, or "summa potestas," whether vested in one or in many, is, that it is "solius Dei imperio subditus." This agrees with that of our Church; which describes our supreme magistrate, or sovereign, to be "*next under God, supreme,* over all

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This visionary idea of a government by compact was, as Filmer says, "first hatched in the schools; and hath, ever since, been fostered by Papists, for good divinity." For some time, the world seemed to regard it merely as another Utopian fiction; and it was long confined to the disciples of Rome and Geneva, who, agreeing in nothing else, yet agreed in this. In an evil hour it gained admittance into the Church of England; being first patronized by her during the civil wars, by "a few miscreants, who were as far from being true Protestants, as true Subjects." Mankind have listened, and continue to listen to it with a predilection and partiality, just as they do to various other exceptionable notions, which are unfavourable to true religion and sound morals; merely from imagining, that if such doctrines be true, they shall no longer be subjected to sundry restraints, which, however wholsome and proper, are too often unpalatable to our corrupt natures. What we wish to be true, we easily persuade ourselves is true. On this principle it is not difficult to account for our thus eagerly following these *ignes fatui* of our own fancies or "feelings," rather than the sober steady light of the word of God; which (in this instance as well as in others) lies under this single disadvantage, that it proposes no doctrines which may conciliate our regards by flattering our pride.

If, however, we can even resolve no longer to be bewildered by these vain imaginations, still the interesting question presses on us, "Where," in the words of Plato*, "where shall we look for the origin of government?" Let Plato himself instruct us. Taught then by this oracle of Heathen wisdom, "we will take our stations there, where the prospect of it is most easy and most beautiful." Of all the theories respecting the origin of government with which the world has ever been either puzzled, amused, or instructed, that of the Scriptures alone is accompanied by no insuperable difficulties.

It was not to be expected from an all-wise and all-merciful Creator, that, having formed creatures capable of order and rule, he should turn them loose into the world under the guidance only of their own unruly wills; that, like so many wild beasts, they might tear and worry one another in their mad contests for preeminence. His purpose from the first, no doubt, was, that men should *live godly and sober lives.* But, such is the sad estate of our corrupted nature, that, ever since the Fall, we have been averse from good, and prone to evil. We are, indeed, so disorderly and unmanageable, that, were it not for the restraints and the terrors of human laws, it would not be possible for us to dwell together. But as men were clearly formed for society, and to dwell together, which yet they cannot do without the restraints of law, or, in other words, without government, it is fair to infer that government was also the original intention of God†, who never decrees the end, without also decreeing the means. Accordingly, when man was made, his Maker did not turn him adrift into a shoreless ocean, without star or compass to steer by. As soon as there were some to be governed, there were also some to govern: and the first man, by virtue of that paternal claim, on which all subsequent governments have been founded, was first invested with the power of government. For, we are not to judge of the Scriptures of God, as we do of some other writings; and so, where no express precept appears,

causes, persons, &c." Now, on the principle of those who, without rejecting Grotius's definition, found government on compact, and derive power mediately from God, and immediately from the people, these strange consequences must follow; viz. that this supremacy is, and is not, "*next under God;*" that it is superior and inferior, above and below the people, supreme and dependent.

*Plato, of Laws, book iii.

† "To him that shall diligently read the Scriptures, it will be plain and evident, that the Son of God, having created our first parents, and purposing to multiply their seed into many generations, for the replenishing of the world with their posterity, did give to Adam for his time, and to the rest of the Patriarchs and Chief Fathers successively before the Flood, authority, power, and dominion over their children and offspring, to rule and govern them; ordaining, by the very law of Nature, that their said children and offspring (begotten and brought up by them) should fear, reverence, honour, and obey them. Which power and authority before the Flood resting in the Patriarchs and in the Chief Fathers, because it had a very long extent, not only for the education of their said children and offspring whilst they were young, but likewise for the ordering, governing, and ruling of them afterwards when they came to man's estate; and for that also it had no superior power or authority over or above it on earth appearing in the Scriptures: although it be called either patriarchal, regal, or imperial, and that we only term it "potestas regia;" yet, being well considered how far it did reach, we may truly say that it was in a sort "potestas regia;" as now, in a right and true construction, "potestas regia" may justly be called potestas patria.

"If any man shall therefore affirm, that men at the first, without all good education or civility, ran up and down in woods and fields as wild creatures, resting themselves in caves and dens, and acknowledging no superiority over one another, until they were taught by experience the necessity of government; and that thereupon they chose some among themselves to order and rule the rest, giving them power and authority so to do; and that, consequently, all civil power, jurisdiction and authority was first derived from the people and disordered multitude; or either is originally still in them, or else is deduced by their consents naturally from them; and is not God's ordinance, originally descending from him, and depending upon him,—He doth greatly err." "Placet eis."—Bishop Overall's Convocation Book, MDCVI, cap. 2. can. 2.

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hastily to conclude that none was given. On the contrary, in commenting on the Scriptures, we are frequently called upon to find out the precept from the practice. Taking this rule, then, for our direction in the present instance, we find, that, copying after the fair model of heaven itself, wherein there was government even among the angels, the families of the earth were subjected to rulers, at first set over them by God: *for, there is no power, but of God; the powers that be are ordained of God.* The first father was the first king: and if (according to the rule just laid down) the law may be inferred from the practice, it was thus that all government originated; and monarchy is it's most ancient form.

Little risque is run in affirming, that this idea of the patriarchal origin of government has not only the most and best authority of history, as far as history goes, to support it; but that it is also by far the most natural, most consistent, and most rational idea. Had it pleased God not to have interfered at all in the case, neither directly nor indirectly, and to have left mankind to be guided only by their own uninfluenced judgments, they would naturally have been led to the government of a community, or a nation, from the natural and obvious precedent of the government of a family. In confirmation of this opinion, it may be observed, that the patriarchal scheme is that which always has prevailed, and still does prevail, among the most enlightened people*: and (what is no slight attestation of it's truth) it has also prevailed, and still does prevail, among the most unenlightened†. According to Vitruvius, the rudiments of architecture are to be found in the cottage: and, according to Aristotle, the first principles of government are to be traced to private families. Kingdoms and empires are but so many larger families: and hence it is that our Church,

*"To fathers within their private families Nature hath given a supreme power: for which cause we see, throughout the world, even from the first foundation thereof, all men have ever been taken as lords and lawful kings in their own houses."—Hooker's Ecclesiastical Polity, book i. p. 20.

"From earliest times the people were accustomed to look up to one family, as presiding over national concerns, religious equally and political; by an hereditary right partaking, in public opinion, of divine authority."—Mitford's Hist. of Greece, vol. i. p. 64.

It is the general sentiment of Homer, that Jupiter hath entrusted the sceptre and the laws to kings, that he may govern by them: just as it is the prevailing sentiment of the Scriptures, that, through God, *kings reign, and princes decree justice.* The passages are innumerable, in which Homer calls kings the *shepherds* and *fathers* of their people. Referred merely to Homer, the opinion of those etymologists who derive πατηρ from τηρεω—ut de Deo sit, ὁ το παν τηρων; de homine verò, ως τους παιδας τηρων, though unusual, is by no means to be scorned. Homer's common phrase for kings, as fathers, is, πατηρ ὡς ἤπιος ηεν; intimating, that the authority of kings was of the genuine and legitimate kind. i.e. paternal; or strict, yet tender.

"Aristotle's opinion on this point is, that the power of government did originally arise from the right of fatherhood; which cannot possibly consist with that natural equality which men dream of: for, in the first of his politics, he agrees exactly with the Scripture, and lays this foundation of government. The first society, saith he, made of many houses, is a village, which seems most naturally to be a colony of families, or foster-brethren of children and children's children."—Filmer's Patriarcha, p. 28.

That the Romans also (at least in the early period of their history) considered government as patriarchal, or as derived from, and analogous to, that of fathers over children, is probable from Romulus's having given the name of *patres* and *patricians* to those citizens, to whom the chief share of power was allotted.

†"Le gouvernement Chinois nous rappelle celui des patriarches. L'autorité que ceux-ci avoient sur leur famille, l'empereur de la Chine l'exerce pleinement sur ses sujets. Tout annonce d'ailleurs, que la gouvernement patriarchal est le source du gouvernement monarchique, pris dans toute son etendue."—Description de la Chine, par M. l'Abbé Grosier, tom. ii. p. 1.

"Their government and their laws" (viz. those of some savage tribes of Africans) "appear to have been originally of the patriarchal kind, where the elder of every family was priest and judge."—Matthews's Voyage to Sierra Leone, p. 73.

"The word Mungo, which the Europeans translate King, signifies only Head-man: and he is always addressed by the title of Fasiè, or *father.*" Ibid. p. 74.

A more striking testimony in favour of the universality of the opinion, that government is indeed (as was said of John the Baptist) *not of men, but of God,* could not well have been given, than has been given by the elegant historian of America. It is the more striking, and more forcible, from it's not having been so intended: for, certainly, nothing could be farther from Dr. Robertson's thoughts than it must have been to give any countenance or support to an *unpopular* obsolete doctrine, espoused by Filmer, and run down by Locke.

"The dominion of the Incas, though the most absolute of all despotisms, was mitigated by it's alliance with religion. The mind was not humbled and depressed by the idea of a forced subjection to the will of a superior; obedience paid to one who was *believed to be cloathed with divine authority,* was willingly yielded, and implied no degradation. The sovereign, conscious that the submissive reverence of his people flowed from their *belief of his heavenly descent,* was continually reminded of a distinction which prompted him to imitate that beneficent power which he was supposed to represent. In consequence of these impressions, there hardly occurs, in the traditional history of Peru, *any instance of rebellion* against the reigning prince; and among twelve successive monarchs, there was not one tyrant."—Robertson's History of America, vol. ii. p. 310, 4to edit.

The intelligent reader is requested to compare this pleasing account of this sensible, good, and happy people, with the same author's description of their fiercer and more heroical brethren of the North, who were distinguished by a rampant spirit of liberty; or, as our gentler author (softened no doubt by the mild spirit of whiggism) is pleased to term that spirit, "the pride of independence, impatience under any spe-

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in perfect conformity with the doctrine here inculcated, in her explication of the fifth commandment, from the obedience due to parents, wisely derives the congenial duty of *honouring the king and all that are put in authority under him.*

It is from other passages of Scripture, from the nature of the thing, from the practice of Adam, and from the practice of all nations (derived from and founded on this precedent) that we infer that Adam had and exercised sovereign power over all his issue. But the first instance of power exercised by one human being over another is in the subjection of Eve to her husband. This circumstance suggests

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cies of restraint, and a disdain to acknowledge any superior."—Ibid. vol. i. p. 404.

As the idea of a patriarchal government adopted in this Discourse is now very generally rejected, chiefly on the authority of Mr. Locke's answer to a treatise on the subject by Sir Robert Filmer; and as that book is now antiquated, and, where known at all, known only through the medium of the answer to it; and as also I have lately perused the book, and did not find it deserving of all that extreme contempt with which it is now the fashion to mention it, I could not easily reconcile to myself the neglect of this opportunity to recommend it to my readers also to peruse the book, and to judge for themselves.

The chief point in debate between these two authors relates to "the beginning of Political Societies," or the origin of Government. Filmer's opinion is, that every human being is born the political subject of some other human being; that infants, the moment they are born, are the natural subjects of their parents; and that the State, or supreme power of any country, is the parent, or in the place of a parent, to all who are born within it's jurisdiction, entitled to their allegiance, but bound to provide for their guardianship and protection. Mr. Locke's very different opinion is, that all men being born free, equal, and independent, no one could be put out of this estate, and subjected to the political power of another, without his own consent. And that nothing short of the consent of a number of free men, capable of a majority to unite and incorporate into a society, ever did, or could, give beginning to any lawful government in the world. My opinion on both these points has been briefly, and perhaps unsatisfactorily, but very sincerely, delivered in the body of the sermon: to which, as I am not now engaged to write either a direct answer to Mr. Locke, or a defence of Sir Robert Filmer, all that I am solicitous to add, is, that my opinion is the same that it was, as to this point, two-and-twenty years ago.

Mr. Locke, with a great shew of candour, treats Filmer pretty much as controversial writers in general treat their opponents. Even in his preface, and before it was possible he could have shewn that his censures were well founded, unmindful of his own excellent rule, that "railing should not be taken for arguments," he endeavours to excite a prejudice against the author, by rudely taxing him with "glib nonsense." There are, no doubt, in several of Sir Robert Filmer's Treatises, many weak things; for, he does not appear to have been an author by profession—of course he was not so careful in the selection either of his arguments or his style, as more experienced writers usually are, and as no doubt he ought to have been. Many are the imperfections of this nature which his answerer has detected, and exposed with very little remorse: whilst he passes over, without noticing, or at least with a very slight notice, those parts of the Treatise he answers, which alone are of great moment, and which (it is believed) are unanswerable. The leading idea, or principle, of Sir Robert Filmer's Patriarcha is, that government is not of human, but divine origin; and that the government of a family is the basis, or pattern, of all other government. And this principle, notwithstanding Mr. Locke's answer, is still (in the opinion of the author of these sermons) unrefuted, and still true. Some weak arguments, which were unwarily used to defend it, were indeed very satisfactorily refuted: this, however, proved no more than that the answerer was strong only where the first writer was weak.

It is allowed, that the author of the Patriarcha entertained some very extravagant notions on monarchy, and the sacredness of kings: and (what is perhaps still less pardonable) some disparaging and unjust opinions respecting the supremacy of law. On these points his cooler antagonist, who was a bigot (if a bigot at all) to more popular opinions, attacks, and even ridicules him with success. This success would have been greater, had it not been tarnished by many ungentleman-like sneers, which were ever and anon thrown out, on the knight's having been a courtier. This was a low artifice, which Mr. Locke should have disdained; and which, whether he disdained or no, he would probably have forborne, had he recollected that, in the age of Sir Robert Filmer, the being a courtier was a truly honourable distinction.

And all that he has written, as well as all that has been written concerning him, shews, that Sir Robert Filmer, though certainly not so careful and close a reasoner as Mr. Locke, was neither less learned, nor of a less elevated and liberal mind. He was also, if not a profound, yet a fair, candid, and gentlemanly writer. Nor should it be omitted, because it is much to his credit, that he appears to have been actuated by two as noble and as dignified sentiments as can warm the human breast; I mean, loyalty and piety.

Mr. Locke had the good fortune to enjoy a pre-eminent reputation for political wisdom longer than most men who have degraded great abilities by employing them to promote the temporary purposes of a party. Till the American war, he was looked up to as an oracle: and the whole nation implicitly pinned their faith, in politics, on his dogmas. But, when that great controversy between the Parent State and her Colonies came to be agitated, men were under a necessity of examining, thinking, and judging for themselves. One consequence of their doing so was, that the high degree of infallibility, which, till then, had been ascribed to the name and the works of Mr. Locke, was greatly lessened. At length, in 1781, Dr. Tucker, the celebrated Dean of Gloucester, wrote a Treatise (and one of the best he ever did write) on purpose to "consider, examine, and confute the notions of Mr. Locke and his followers, concerning the origin, extent, and end of civil government." Since that time writers in general venture to read Mr. Locke, as they do other authors, without being overawed by the unmerited popularity attached to his name. One of the last, and not least eminent of our political writers, boldly calls him (yet not with more freedom than justice)—"that arch propagator of wild conceits, that wholesale fabricator of fantastical systems of polity, (accuse me not of political blasphemy!) John Locke, who had scarcely given birth to this shapeless abortion, when he crushed it at a stroke, by proving the impossibility of it's existence. He was compelled to acknowledge, that the coming into society upon such terms would be—only to go out again."—See a Letter to the Hon. Tho. Erskine, by John Gifford, Esq. p. 56.

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sundry reflections, of some moment in this argument. In the first place, it shews that power is not a natural right. Adam could not have assumed, nor could Eve have submitted to it, had it not been so ordained of God. It is, therefore, equally an argument against the domineering claims of despotism, and the fantastic notion of a compact. It proves too, that there is a sense in which it may, with truth, be asserted, that government was originally founded in weakness and in guilt: that it may and must be submitted to by a fallen creature, even when exercised by a fallen creature, lost both to wisdom and goodness. The equality of nature (which, merely as it respects an ability to govern, may be admitted, only because God, had he so seen fit, might have ordained that the man should be subjected to the woman) was superseded by the actual interference of the Almighty, to whom alone original underived power can be said to belong.

Even where the Scriptures are silent, they instruct: for, in general, whatever is not therein commanded is actually forbidden. Now, it is certain that mankind are no where in the Scriptures commanded to resist authority; and no less certain that, either by direct injunction, or clear implication, they are commanded to *be subject to the higher powers:* and this subjection is said to be enjoined, not for our sakes only, but also *for the Lord's sake.* The glory of God is much concerned, that there should be good government in the world: it is, therefore, the uniform doctrine of the Scriptures, that it is under the deputation and authority of God alone that *kings reign and princes decree justice.* Kings and princes (which are only other words for supreme magistrates) were doubtless created and appointed, not so much for their own sakes, as for the sake of the people committed to their charge: yet are they not, therefore, the creatures of the people. So far from deriving their authority from any supposed consent or suffrage of men, they receive their commission from Heaven; they receive it from God, the source and original of all power. However obsolete, therefore, either the sentiment or the language may now be deemed, it is with the most perfect propriety that the supreme magistrate, whether consisting of one or of many, and whether denominated an emperor, a king, an archon, a dictator, a consul, or a senate, is to be regarded and venerated as the vicegerent of God.

But were the texts usually appealed to on this topic more dubious than (we bless God!) they are, the example of the Christian legislator may, at least to Christians, well stand in the place of all precepts. There are not many questions, in which the interests of mankind are more nearly concerned than they are in ascertaining their duty as subjects. It is therefore very improbable, that the Saviour of the world should have left the world in the dark, in an affair of so much moment: but that he should have misled his followers, and that Christians should have been exposed to the hazard of becoming bad subjects even through the inadvertence of their founder, it is little less than blasphemy to suppose. We are therefore deeply interested to find out, if we can, what it was that our Saviour really thought, said, and did, in the case; and for what purpose.

It is readily acknowledged, that his history (in which alone his laws are contained) does not dwell copiously on the duties of sovereigns and subjects. This appearance of inattention, we may be assured, was not permitted without design: nor, in fact, is our duty on this point (any more than it is in others) the less forcibly inculcated by our having been left to find out the precept from his practice. On one point, however, of great moment in this discussion, the gospel history, when properly understood, is full and decided; viz. that every thing our blessed Lord either said or did, pointedly tended to discourage the disturbing a settled government. Hence it is fair to infer the judgment of Jesus Christ to have been, that the most essential duty of subjects with respect to government was (in the phraseology of a prophet) *to be quiet, and to sit still.* Yet, had he judged of

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Mr. Locke, however, and his followers, in presenting these principles to the public in their most popular form, have the demerit only of having new-dressed principles which are at least as old as the rebellion of Korah, Dathan, and Abiram. In the unhappy reign of the first Charles, those principles were industriously revived and brought forward with great zeal: and there is hardly a principle or project of any moment in Mr. Locke's Treatise, of which the rudiments may not be traced in some of the many political pieces which were then produced. In a collection of "Original Papers relative to the History of the Colony of Massachusetts Bay," which Governor Hutchinson had printed, but which were never published, I find the following passages; containing, if I mistake not, the very essence of Mr. Locke's system. The Paper, from which these passages are taken, is intitled "Libertye and the Weale Publick reconciled, in a Declaration to the late Court of Elections at Newtown, the 17th of the 3d Month, 1637." In this declaration Liberty is thus defined: "That the people may not be subjected to any lawe, or power, amonge themselves, *without theire consent:* whatsoever is more than this, is neither lawful nor durable, and insteade of libertye, may prove bondage, or licentiousnesse." This is farther defended from some exceptions made by Mr. Vane, afterwards Sir Henry Vane, thus: "It is clearly agreed by all, that the care of safety and wellfare was the original cause or occasion of common weales, and of many families subjecting themselves to rulers and lawes: for *no man hath lawfulle power over another but by consent;* so likewise, by the lawe of proprietie, *no man can have just interest in that which belongeth to another, without his consent.*"

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questions of this nature as we do, he certainly did not want motives to induce him to excite commotions in the government of Judea; and such motives too as (according to human reckoning) are highly meritorious and honourable. At the time when he was upon earth, his country groaned under an unjust and most oppressive bondage. It had just been subdued by a people, whose chief motive for overrunning the world with their conquests was a lust of dominion: and it was as arbitrarily governed, as it had been iniquitously acquired. The Jews, it is true, were not then eminent, at least as a nation, for their virtues: but they were not chargeable with that "un-Roman spirit," as one of our orators expressed himself, or (to borrow the congenial phraseology of another) that "degeneracy of soul," which led them tamely to submit to their oppressors. A general opinion prevailed in the nation, that the expected Messiah would deliver them from this galling vassalage; that he was to be, not a spiritual, but a temporal, prince—a prince who should restore to Israel the supremacy, of which the Romans had deprived it—who should reign in all secular pomp and power in the throne of David—and, having subdued the rest of the world, make Jerusalem the seat of an universal monarchy. The very name given to him imports royalty and sovereignty: and he really was the legal heir to the crown of Judea.

In support of this assertion, it is to be observed, that the Jews had two ways of tracing their genealogies, by a kind of double descent; the one natural, the other legal. The natural descent was when a person, by natural generation, descends from another; the legal, when one not naturally descended from another, yet succeeded, as nearest of kin, to the inheritance. St. Luke deduces the natural line of Christ from David; and shews how Christ, by Nathan, is the son of David, according to the flesh, by natural descent: whereas St. Matthew deduces the legal line of Christ also from David, shewing how Christ, as Solomon's heir, and lawful king of the Jews, succeeded, as nearest of kin, to sit upon the throne of David his father: and the Evangelist is so satisfied with the legality of this genealogy, that he calls Christ, "*the born* king of the Jews," that is to say, the person who was their king by birth*. The Jews themselves could name none of their nation who was nearer than he was. None of them ever produced any legal exception against him; and therefore, whilst a large party, convinced of the validity of his title to the throne by birth, wished to confirm it by election, and to make him a king, all that the friends of the Power who was in possession, or his enemies, could do to defeat his claim, was to get the Romans on their side, by artfully insinuating that the best of all titles was that which had been obtained by conquest: hence, their cry was, *We will have no king but Caesar!*

Add to this—It is well known that in no instance whatever did our Saviour give greater offence to his countrymen than he did by not gratifying them in their expectations of a temporal deliverance. For this opinion of his title to the throne was not taken up at random; nor only by a few persons, merely to serve some bye-ends of their own. The idea pervades his whole history. It was one of the chief grounds of the enmity of his countrymen towards him, and the only plausible pretence on which he could be arraigned. And, notwithstanding his repeated declarations that his *kingdom was not of this world,* yet it was on this account that at last he was *brought as a lamb to the slaughter.*

When it is asserted that Christianity made no alteration in the civil affairs of the world, the assertion should neither be made, nor understood, without some qualification. The injunction to *render unto Caesar the things that are Caesar's,* is no doubt very comprehensive; implying that unless we are good Subjects, we cannot be good Christians: but then we are to *render unto Caesar,* or the supreme magistrate, that obedience only to which God has given him a just claim: our paramount duty is to God, to whom we are to render *the things that are God's.* If, therefore, in the course of human affairs, a case should occur (and no doubt such cases do often occur) in which the performance of both these obligations becomes incompatible, we cannot long be at a loss in determining that it is our duty to obey God rather than men. The worship of idols, as well as sacrifices and auguries, certainly entered into, and made a part of, the civil policy of ancient Rome. Temples dedicated to a variety of false deities were under the peculiar care of the Senate. The office of Pontifex Maximus, or High Priest, was annexed to the title of Emperor. Now, surely, it was the intention of the Founder of Christianity, and it is the natural tendency of it's doctrines, to produce some alteration in things of this sort. In Mahometan countries, a plurality of wives is allowed by law: in many countries still Pagan, the worship of images is enjoined by the State: in several parts of Africa, parents who are past labour are, by the laws of the land, exposed by their children to be torn in pieces by wild beasts: and even in so civilized a country as China, children are thus exposed by their parents, with

*See Matth. ch. ii. ver. 2.

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the sanction and authority of the laws. Would Christianity endure such shocking outrages against all that is humane, moral, or pious, though supported by Government? It certainly would not: for the spirit of St. Paul, when he saw the city of Athens *wholly given to idolatry,* was so *stirred in him,* that, for disputing publicly with *certain philosophers of the Epicureans and of the Stoics,* they carried him unto Areopagus; where, far from shrinking from his duty, he openly arraigned all the people of Athens, of being *too superstitious.* This charge he founded on his having seen *an altar with this inscription, To the unknown God;* which yet was not set up contrary to law. Sundry improprieties, sanctioned by legal authority, were censured by Christ himself. Was it not by virtue of his regal power that, as *one having authority,* he cast the buyers and sellers out of the temple; who yet were there, and pursuing their usual callings, with the public permission? Still, though they certainly were not restrained by any idea that all interference with the civil affairs of the world was contrary to Christianity, it no where appears, that either our Saviour, or any of his apostles, ever did interfere with the affairs of any government, or the administration of any government, otherwise than by submitting to them. Yet, let it not be said, that he who could have commanded *more than twelve legions of angels,* wanted power or means to have *resisted,* and with effect, that pusillanimous Roman governor, who, from the basest of all motives, *gave sentence,* that a person in whom he declared he *found no fault,* should be put to death, merely to gratify a senseless, malicious, and clamorous multitude. Let it not be said, that his pretensions to sovereignty were either romantic or dubious: *a great multitude* of his cotemporaries and countrymen, *being in number about five thousand,* thought so favourably of them, that they would have set him on their throne in that way by which alone we are now told authority over a free people can properly be obtained, viz. by the suffrages of the people. To assert his claim *de jure* against those who held it *de facto,* they would fain have *taken him by force* (that is, no doubt, in opposition to the Romans and their adherents) *to make him a king.* That he was not restrained from gratifying these natural wishes of so large a number of his impatient countrymen, by any apprehensions of his being evil-spoken of, as *a pestilent fellow,* one who *perverted the people, forbidding to give tribute to Caesar, and saying that he himself was king,* may very rationally be inferred from his having submitted to no less unmerited aspersions with invincible fortitude: and his yielding at last to the ignominy of the cross, proves that he was not to be deterred from doing any thing which he knew would redound either to the glory of God, or the good of mankind, by the dread of any calumnies, or the terrors of any sufferings*.

His constant discouragement, therefore, of a scheme so well calculated not only to promote his own elevation, but to emancipate his country (had he estimated either worldly grandeur, or the condition of subjects under government, according to our ideas) would have been inconsistent with that love to mankind which he manifested in every other action of his life. The only rational conclusion, therefore, that the case will admit of, is, that he thought it would be better, both for Judea in particular, and for the world in general, that in the former case the people should not be distracted by a revolution, and in the latter that there should be no precedent to which revolutionists might appeal: his words were not meant to bear merely a local and circumscribed, but a general and extended application, when he directed his followers to *render unto Caesar the things that are Caesar's:* his practice was conformable to this precept; and so would ours be, were we but practically convinced that *it is enough for the disciple to be as his master, and the servant as his lord.* As Christians, solicitous to tread in the steps in which our Saviour trod, the tribute of civil obedience is as much due to our civil rulers, even

*This extreme reluctance of the Jews to pay tribute to any Foreign Power was sanctioned by their religion: for, in Deuteron. ch. xvii. ver. 15. they are expressly enjoined to choose a king *from among their brethren, and not a stranger.* It was natural, therefore, that they should regard the paying tribute to the Romans as a badge of slavery; and natural also, that they should very generally dislike the publicans, who were the persons appointed by the Romans to collect such tribute. Judas the Gaulonite, taking advantage of this national prepossession, with the avowed purpose of shaking off this yoke, excited an insurrection: and so numerous were his adherents, that even after they were crushed as a civil party, they seem to have existed as a religious sect, under the name of *Zealots.* Persons of this order appear to have acted as public censors, or as societies for the reformation of manners; and, as such, were sometimes called The Just. Of this order, it is probable, those persons were, whom the Chief Priests and Scribes employed to *watch* and *to take hold of the words* of our Saviour: and therefore the expression in St. Luke, ch. xx. ver. 20. *which should feign themselves just men,* would be more accurately translated, if rendered, who feigned themselves, or pretended to be, *the Just;* that is to say, of the order of *the Just.* Jesus Christ himself was accused of being of this order; because, as it was alleged, he *forbade the people to give tribute* unto Caesar. To this circumstance of his being of that sect, which originated in his country of Galilee, the wife of Pilate may be supposed to have alluded, when she sent to her husband, saying, *Have thou nothing to do with that Just Man!*

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though they should happen to be invaders like the Romans, and though, like Herod, the ministers of government should chance to be oppressors, as the duty of religious obedience is a debt which we owe to *the King of kings, and Lord of lords.*

Nor let this be deemed a degrading and servile principle: it is the very reverse; and it is this it's superior dignity which proves it's celestial origin. For, whilst other doctrines and other systems distract the world with disputes and debates which admit of no decision, and of *wars and fightings* which are almost as endless as they are useless, it is the glory of Christianity to teach her votaries patiently to bear imperfections, inconveniences and evils in government, as in every thing else that is human. This patient acquiescence under some remediless evils is not more our duty than it is our interest: for, the only very intolerable grievance in government is, when men allow themselves to disturb and destroy the peace of the world, by vain attempts to render that perfect, which the laws of our nature have ordained to be imperfect. And there is more magnanimity, as well as more wisdom, in enduring some present and certain evils, than can be manifested by any projects of redress that are uncertain; but which, if they fail, may bring down irretrievable ruin on thousands of others, as well as on ourselves: since to suffer nobly indicates more greatness of mind than can be shewn even by acting valiantly. Wise men, therefore, in the words of a noted philosopher,* will "rather choose to brook with patience some inconveniences under government (because human affairs cannot possibly be without some) than self-opinionatedly disturb the quiet of the public." And, weighing the justice of those things you are about, not by the persuasion and advice of private men, but by the laws of the realm, you will no longer suffer ambitious men, through the streams of your blood, to wade to their own power; but esteem it better to enjoy yourselves in the present state, though perhaps not the best, than, by waging war, endeavour to procure a reformation in another age, yourselves "in the meanwhile either killed, or consumed with age."

This long enquiry concerning the divine origin and authority of government might perhaps have been deemed rather curious than useful, were it not of acknowledged moment, that some dangerous inferences which are usually drawn from the contrary opinion should be obviated. One of these dangerous inferences it seems to have been the aim of the sermon now before me to inculcate. Government being assumed to be a mere human ordinance, it is thence inferred, that "rulers are the servants of the public": and, if they be, no doubt it necessarily follows, that they may (in the coarse phrase of the times) be *cashiered* or continued in pay, be reverenced or resisted, according to the mere whim or caprice of those over whom they are appointed to rule. Hence the author of this sermon also takes occasion to enter his protest against "passive obedience and non-resistance."

It really is a striking feature in our national history, that, ever since the Revolution, hardly any person of any note has preached or published a sermon, into which it was possible to drag this topic, without declaring against this doctrine. It seems to have been made a kind of criterion or test of principle, and the watch-word of a party. For, it cannot well be said, that the circumstances of the times, or the temper of men's minds, either lately have been, or now are, such as particularly to call for these studied and repeated protestations. What is not less remarkable is, that whilst the right of resistance has thus incessantly been delivered from the pulpit, insisted on by orators, and inculcated by statesmen, the contrary position is still (I believe) the dictate of religion, and certainly the doctrine of the established Church, and still also the law of the land.

You are not now to learn my mind on this point. As, however, the subject has again been forced on me, let me be permitted again to obviate, if I can, some fresh misrepresentations, and again to correct some new mistakes.

All government, whether lodged in one or in many, is, in it's nature, absolute and irresistible. It is not within the competency even of the supreme power to limit itself; because such limitation can emanate only from a superior. For any government to make itself irresistible, and to cease to be absolute, it must cease to be supreme; which is but saying, in other words, that it must dissolve itself, or be destroyed. If, then, to resist government be to destroy it, every man who is a subject must necessarily owe to the government under which he lives an obedience either active or passive: active, where the duty enjoined may be performed without offending God; and passive, (that is to say, patiently to submit to the penalties annexed to disobedience,) where that which is commanded by man is forbidden by God. No government upon earth can rightfully compel any one of it's subjects to an active compliance with any

*Hobbes.

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thing that is, or that appears to his conscience to be, inconsistent with, or contradictory to, the known laws of God: because every man is under a prior and superior obligation to *obey God in all things.* When such cases of incompatible demands of duty occur, every well-informed person knows what he is to do; and every well-principled person will do what he ought, viz. he will submit to the ordinances of God, rather than comply with the commandments of men. In thus acting he cannot err; and this alone is "passive obedience," which I entreat you to observe is so far from being "unlimited obedience," (as it's enemies wilfully persist to miscall it,) that it is the direct contrary. Resolute not to disobey God, a man of good principles determines, in case of competition, as the lesser evil, to disobey man: but he knows that he should also disobey God, were he not, at the same time, patiently to submit to any penalties incurred by his disobedience to man.

With the fancies or the follies of the injudicious defenders of this doctrine, who, in the heat of controversy, have argued for the exclusive irresistibility of kings, merely in their personal capacity, I have no concern. Such arguments are now to be met with only in the answers of those equally injudicious, but less candid, opposers of the doctrine, who (as though there were any gallantry in taking a fortress that is no longer defended) persist to combat a phantom which, now at least, may be said to be of their own creating. In the present state of things, when a resistance is recommended, it must be, not against the king alone, but against the laws of the land. To encourage undistinguishing multitudes, by the vague term of resistance, to oppose all such laws as happen not to be agreeable to certain individuals, is neither more nor less than, by a regular plan, to attempt the subversion of the government: and I am not sure but that such attacks are more dangerous to free than to absolute governments.

Even the warmest advocates for resistance acknowledge, that, like civil liberty, the term is incapable of any accurate definition*. Particular cases of injury and oppression are imagined: on which arguments are founded, to shew that mankind must be determined and governed, not by any known and fixed laws, but "by a law antecedent and paramount to all positive laws of men;" "by their natural sense and feelings." These unwritten, invisible, and undefinable "antecedent laws;" this indescribable "natural sense and feelings;" these "hidden powers and mysteries" in our Constitution, are points too refined and too subtle for argument. Indeed it can be to little purpose to argue, either on resistance or on any other subject, with men who are so weak as to declaim, when it is incumbent on them to reason.

Without any encouragement, mankind, alas! are, of themselves, far too *prone to be presumptuous and self-willed;* always disposed and ready to *despise dominion,* and *to speak evil of dignities.* There is, says a learned writer†, such a "witchcraft in rebellion, as to tempt men to be rebels, even though they are sure to be damned for it." What dreadful confusions and calamities must have been occasioned in the world, had such strong and dangerous natural propensities been directly encouraged by any positive law! It was surely, then, merciful and wise in the Almighty Ruler of the world, to impose on his creatures the general law of obedience without any exceptions. A non-resisting spirit never yet made any man a bad subject. And if men of such mild and yielding tempers have shewn less ardour, than many others do, in the pursuit of that liberty which makes so conspicuous a figure in the effusions of orators and poets, it can be only for this reason, that they think it is precisely that kind of liberty which has so often set the world in an uproar, and that therefore it would be better for the world if it were never more heard of‡. If they are mis-

*The Marquis of Halifax confesses, that the right of resistance, which yet he contends is the life and soul of our Constitution, cannot be defined:

"It is," he says, "an *hidden power* in the Constitution, which would be lost if it were defined: a certain *mystery,* by virtue of which a nation may, at some critical times, be secured from ruin; but then it must be kept a *mystery.* It is rendered useless when touched by unskilful hands: and no people ever had or deserved to have that power, which was so unwary as to anticipate their claim to it."

†Dean Sherlock, in his Case of Resistance.

‡To men of plain sense, who (having no party purposes to serve) in any controverted question are anxious only to find the truth, it is wearisome to have, instead of a fair attempt to illustrate or clear up any of the great difficulties which embarrass, and must for ever embarrass, the subject of government, in all political discussions, this one unvaried topic of declamation for ever dinned in their ears. But it is particularly irksome to find such stale and thread-bare sophistry adopted and brought forward by so elegant and classical a writer as Lord Lyttelton.

In his first Dialogue of the Dead, he makes Hampden say, "It is a disgrace to our Church to have taken up such opinions; and I will venture to prophesy, that our Clergy must in future times renounce them, or they will be turned against them by those who mean their destruction. Suppose a Popish king on the throne: will the Clergy then adhere to passive obedience and non-resistance? If they do, they deliver up their religion to Rome: if they do not, their practice will confute their own doctrines."

By having taken no care to refute these sentiments; and by the artful compliment thus paid, at the expence of their predecessors, to the Clergy

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taken, their mistakes are at least harmless: and there is much justice, as well as great good sense, in Bishop Hall's remark, that "some quiet errors are better than some unruly truths."

When, not long since, a noted patriot* declared, in his place in Parliament, that he knew no difference between a revolution and a rebellion, excepting that in the former an attempt to alter the form of government succeeded, and in the latter it did not, the sentiment was objected to as licentious and seditious. Yet, on the principles of the advocates of resistance, he said no more than he might easily have defended: nor am I sure but that (notwithstanding the pains which the public men of that period took to guard against such an inference, in their debates on the word *abdication*) on these principles the promoters of the revolution itself, emphatically so called, must submit to the imputation of having effected it by resistance. It was clearly a successful revolution. If, then, this was the case as to the revolution, how, it may be asked, did it differ, in point of principle, either from the grand rebellion that preceded it, or either of the subsequent rebellions for the purpose of restoring the abdicated family? and how, on the same principles, can we condemn the murder of the father, and vindicate the expulsion of the son?—Mr. Locke, like many inferior writers, when defending resistance, falls into inconsistencies, and is at variance with himself. "Rebellion being," as he says, "an opposition not to persons, but to authority, which is founded only in the constitution and laws of the government, those, whoever they be, who by force break through, and by force justify their violation of them, are truly and properly rebels." To this argument no one can object: but it should be attended to, that, in political consideration, it is hardly possible to dissociate the ideas of authority in the abstract from persons vested with authority. To resist a person legally vested with authority, is, I conceive, to all intents and purposes, the same thing as to resist authority. Nothing, but it's success, could have rescued the revolution from this foul imputation, had it not been for the abdication. Accordingly this great event has always hung like a mill-stone on the necks of those who must protest against rebellions; whilst yet their system of politics requires that they should approve of resistance, and the revolution.

The resistance which your political counsellors urge you to practise, (and which no doubt was intended to be justified by the sermon which I have now been compelled to notice,) is not a resistance exerted only against the persons invested with the supreme power either legislative or executive, but clearly and literally against *authority.* Nay, if I at all understand the following declaration made by those who profess that they are the disciples of Mr. Locke, you are encouraged to resist not only all authority over us as it now exists, but any and all that it is possible to constitute. "Can men who exercise their reason believe, that the Divine Author of our existence intended a part of the human race to hold an absolute property in, and an unbounded power over, others marked out by his infinite wisdom and goodness as the objects of a legal domination never rightfully resistible, however severe and oppressive?" It might be hazardous, perhaps, for me, even under the shelter of a Scripture phrase, to call these words *great swelling words;*

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of his day, who, he was well aware, had pretty generally renounced what he affected to prophesy they would renounce, it is too evident this noble author was not unwilling to have them regarded as his own.

There must be a total subversion of every thing that relates to our present Constitution, before we can again have a Popish king on the throne. But, should the Almighty (as a punishment for our great sin in not being sufficiently thankful for the blessing of having long had our throne filled by a mild and patriotic race of Protestant kings) see fit once more to permit a Popish monarch to sit on the throne, God forbid the Clergy should not *adhere* to doctrines enjoined by the law of the land, by the authority of their Church, and by the word of God! Had the noble historian forgotten, or did he only affect to forget, what part the Clergy of the Church of England did in general take when (themselves being Protestants) there actually was a Popish king upon the throne? The seven bishops whom James the Second committed to the Tower, and whom King William deprived for not renouncing King James, did, in neither of their opposite trials, "renounce the doctrines of passive obedience and non-resistance:" yet neither "did they deliver up their religion to Rome, nor confute their own doctrines by their own practice." So far from this, no one circumstance contributed so much to defeat the mad purpose of this bigoted monarch to introduce Popery into the kingdom, as the objections made to it by these persecuted bishops: and unless the principle of resistance may be promoted by an exemplary recommendation of non-resistance, their doctrines were not confuted by their practice. The conduct of these memorable men, on this memorable occasion, is not only a very satisfactory illustration of the true principles of this much misrepresented doctrine, but a complete vindication of it.

Had he been so disposed, Lord Lyttelton might have seen a cloud of witnesses in favour of these exploded doctrines among our older divines. There is a very interesting catalogue of them, together with extracts evincing what their sentiments on this point were, in the history of Sacheverell's trial. He might also have seen, and he is inexcusable if he did not see (and perhaps still more inexcusable if, having seen, he did not learn more from) a most masterly Sermon on Passive Obedience, by Bishop Berkley. I hope I shall neither be regarded as dictatorial, nor unreasonable, in expressing an earnest wish, that no one may hereafter presume to shoot these random arrows against this venerable doctrine, till he has read and considered, and is also able to answer, this Discourse by this eminent Prelate.

*Mr. Wilkes.

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because they are congressional words. That they have excited a very general panic, and many apprehensions of a real impending slavery, is no more than might have been expected in a country where there is literally "absolute property in, and unbounded power over, human beings." How far this was intended, I presume not to judge. But, involved and obscure as the language (in which these extraordinary sentiments are couched) must be confessed to be, the declaration certainly points at all government: and it's full meaning amounts to a denial of that just supremacy which "the Divine Author of our existence" has beyond all question given to "one part of the human race" to hold over another. Without some paramount and irresistible power, there can be no government. In our Constitution, this supremacy is vested in the King and the Parliament; and, subordinate to them, in our Provincial Legislatures. If you were now released from this constitutional power, you must differ from all others "of the human race," if you did not soon find yourselves under a necessity of submitting to a power no less absolute, though vested in other persons, and a government differently constituted. And much does it import you to consider, whether those who are now so ready to promise to make *the grievous yoke of your fathers lighter,* may not themselves verify Rehoboam's assertion, and make you feel that *their little fingers are thicker than your father's loins.*

Be it (for the sake of argument) admitted, that the government under which till now you have lived happily, is, most unaccountably, all at once become *oppressive and severe;* did you, of yourselves, make the discovery? No: I affirm, without any apprehension of being contradicted, that you are acquainted with these oppressions only from the report of others. For what, then, (admitting you have a right to resist in any case,) are you now urged to resist and rise against those whom you have hitherto always regarded (and certainly not without reason) as your *nursing fathers and nursing mothers?* Often as you have already heard it repeated without expressing any disapprobation, I assure myself it will afford you no pleasure to be reminded, that it is on account of an insignificant duty on tea, imposed by the British Parliament; and which, for aught we know, may or may not be constitutionally imposed; but which, we well know, two thirds of the people of America can never be called on to pay. Is it the part of an *understanding people,* of loyal subjects, or of good Christians, instantly to resist and rebel for a cause so trivial? O my brethren, consult your own hearts, and follow your own judgments! and learn not your "measures of obedience" from men who weakly or wickedly imagine there can be liberty unconnected with law—and whose aim it is to drive you on, step by step, to a resistance which will terminate, if it does not begin, in rebellion! On all such trying occasions, learn the line of conduct which it is your duty and interest to observe, from our Constitution itself: which, in this particular, is a fair transcript or exemplification of the ordinance of God. Both the one and the other warn you against resistance: but you are not forbidden either to remonstrate or to petition. And can it be humiliating to any man, or any number of men, to ask, when we have but to *ask and it shall be given?* Is prayer an abject duty; or do men ever appear either so great, or so amiable, as when they are modest and humble? However meanly this privilege of petitioning may be regarded by those who claim every thing as a right, they are challenged to shew an instance, in which it has failed, when it ought to have succeeded. If, however, our grievances, in any point of view, be of such moment as that other means of obtaining redress should be judged expedient, happily we enjoy those means. In a certain sense, some considerable portion of legislation is still in our own hands. We are supposed to have chosen "fit and able" persons to represent us in the great council of our country: and they only can constitutionally interfere either to obtain the enacting of what is right, or the repeal of what is wrong*. If

*"Our Assemblies are the true, proper, legal guardians of our rights, privileges, and liberties. If any laws of the British Parliament are thought oppressive; or if, in the administration of the British government, any unnecessary or unreasonable burthen be laid upon us, they are the proper persons to seek for redress, and they are the most likely to succeed. They have the legal and constitutional means in their hands. They are the *real,* not the *pretended,* representatives of the people. They are bodies known and acknowledged by the public laws of the empire. Their representations will be attended to, and their remonstrances heard." — See "A View of the Controversy between Great Britain and her Colonies, p. 25, by A. W. Farmer;" that is, by the late Bishop Seabury of Connecticut.

The fate of the excellent author of this well-written piece, and several others of not inferior merit under the same signature, might well discourage any man who attempts to serve the public, if animated only by the hopes of temporal rewards. When a missionary in the service of the Society for propagating the Gospel in Foreign Parts, whilst the revolt was still in it's infancy, he wrote several seasonable pieces, adapted to the capacities of the people, under the assumed character of a Farmer. They were generally acknowledged to have done much good. But, being attributed to another Gentleman, he alone derived any personal advantage from them: for, to him the British government granted an hand-

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we, and our fellow-subjects, have been conscientiously faithful in the discharge of our duty, we can have no reason to doubt that our delegates will be equally faithful in the discharge of theirs. Our Provincial Assemblies, it is true, are but one part of our Colonial Legislature: they form, however, that part which is the most efficient. If the present general topic of complaint be, in their estimation, well founded, and a real and great grievance, what reason have you to imagine that all the Assemblies on the Continent will not concur and be unanimous in so representing it? And if they should all concur so to represent it, it is hardly within the reach of supposition that all due attention will not be paid to their united remonstrances. So many and such large concessions have often been made, at the instance only of individual Assemblies, that we are warranted in relying, that nothing which is reasonable and proper will ever be withheld from us, provided only it be asked for with decency, and that we do not previously forfeit our title to attention by becoming refractory and rebellious.

Let it be supposed, however, that even the worst may happen, which can happen; that our remonstrances are disregarded, our petitions rejected, and our grievances unredressed: what, you will naturally ask—what, in such a case, would I advise you to do?—Advice, alas! is all I have to give; which, however, though you may condescend to ask and to regard it, will neither be asked, nor accepted, by those who alone can give it great effect. Yet, circumscribed as our sphere of influence is, we are not wholly without influence; and therefore, even in our humble department, we have some duties to perform. To your question, therefore, I hesitate not to answer, that I wish and advise you to act the part of reasonable men, and of Christians. You will be pleased to observe, however, that I am far from thinking that your virtue will ever be brought to so severe a test and trial. The question, I am aware, was an ensnaring one, suggested to you by those who are as little solicitous about your peace, as they are for my safety: the answer which, in condescension to your wishes, I have given to it, is direct and plain; and not more applicable to you, than it is to all the people of America. If you think the duty of threepence a pound upon tea, laid on by the British Parliament, a grievance, it is your duty to instruct your members to take all the constitutional means in their power to obtain redress: if those means fail of success, you cannot but be sorry and grieved; but you will better bear your disappointment, by being able to reflect that it was not owing to any misconduct of your own. And, what is the whole history of human life, public or private, but a series of disappointments? It might be hoped that Christians would not think it grievous to be doomed to submit to disappointments and calamities, as their Master submitted, even if they were as innocent. His disciples and first followers shrunk from no trials nor dangers*. Treading in the steps of him who, *when he was reviled, blessed, and when he was persecuted, suffered it,* they willingly laid down their lives, rather than resist some of the worst tyrants that ever disgraced the annals of history. Those persons are as little acquainted with general history, as they are with the particular doctrines of Christianity, who represent such submission as abject and servile. I affirm, with great authority, that "there can be no better way of asserting the people's lawful rights, than the disowning unlawful commands, by thus patiently suffering." When this doctrine was more gener-

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some pension, whilst the real Author never received a farthing. All the return that all his exertions procured for him, was imprisonment, persecution, and exile. By this country he was neglected and abandoned; and by that which gave him birth, disowned: though a man of such transcendent abilities as would have been an ornament and a blessing to any country that had seen fit to patronize him. At length, thankful to be forgiven, he was permitted to return to his native country, where, as the bishop of Connecticut, he was supported by an humble eleemosynary pittance contributed by a few private friends in England; and, in February 1796, died as unnoticed as he had lived. Farewell, poor Seabury!—however neglected in life, there still lives one at least who knew thy worth, and honours thy memory!

"His saltem accumulem donis, & fungar inani

"Munere————"

See an Account of his Consecration in Scotland, in Mr. Skinner's very valuable Ecclesiastical History of Scotland, vol. ii. p. 683. See also the Obituary of the Gentleman's Magazine, p. 442, for May 1797.

Before the troubles, the University of Oxford was pleased to confer on him the honorary degree of D. D.; and in 1793 he published, at New York, two volumes of Discourses, which are such as might have brought credit to any Prelate in any age and in any country. Books of any kind, however, (and, perhaps, Sermons least of all,) not being in much demand in America, he wished to have had them republished in England; and for that purpose furnished the Author of this Volume with six more Discourses, in MS. to be added to them. But, such is the obscurity, or possibly the unpopularity, of a man of unquestionable learning and piety, that no Bookseller has yet ventured to undertake the work.

*"Humanity cannot be degraded by humiliation. It is it's very character to submit to such things. There is a consanguinity between benevolence and humility. They are virtues of the same stock."—Burke's Two Letters, 1796, p. 27.

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ally embraced, our holy religion gained as much by submission, as it is now in a fair way of losing for want of it.

Having, then, my brethren, thus long been *tossed to and fro* in a wearisome circle of *uncertain traditions,* or in speculations and projects still more uncertain, concerning government, what better can you do than, following the Apostle's advice, *to submit yourselves to every ordinance of man, for the Lord's sake; whether it be to the King as supreme, or unto GOVERNORS, as unto them that are SENT by him for the punishment of evil-doers, and for the praise of them that do well? For, so is the will of God, that with well-doing ye may put to silence the ignorance of foolish men: as free, and not using your liberty for a cloke of maliciousness, but as the servants of God. Honour all men: love the brotherhood: fear God: honour the king.*

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Common Sense

THOMAS PAINE

January 10, 1776

Thomas Paine (1737–1809) was born in England but frequently referred to himself as a "citizen of the world." He moved to America in 1774, where he was soon involved in the struggle with Great Britain. Paine's powerful rhetoric had a significant effect on the course of events in America. *Common Sense* was by far the most widely read pamphlet of its day and was credited by George Washington, among others, with swaying public opinion in favor of separation from Great Britain. Paine's advocacy of American independence and republicanism represents the most radical edge of thought during this time. In addition to his writings urging revolution in America, he took an active part in the early days of the French Revolution, before being imprisoned by France's revolutionary government. He was saved from execution only by the fall from power (and execution) of the French revolutionary leader Robespierre. His revolutionary activities and frequent attacks against Christian ministers and churches made him many enemies, including in America, and he spent his last years in relative isolation and poverty.

Common Sense

On the Origin and Design of Government in General, with Concise Remarks on the English Constitution

Some writers have so confounded society with government, as to leave little or no distinction between them; whereas they are not only different, but have different origins. Society is produced by our wants and government by our wickedness; the former promotes our happiness *positively* by uniting our affections, the latter *negatively* by restraining our vices. The one encourages intercourse, the other creates distinctions. The first is a patron, the last a punisher.

Society in every state is a blessing, but government, even in its best state, is but a necessary evil; in its worst state an intolerable one: for when we suffer, or are exposed to the same miseries *by a government,* which we might expect in a country *without government,* our calamity is heightened by reflecting that we furnish the means by which we suffer. Government, like dress, is the badge of lost innocence; the palaces of kings are built upon the ruins of the bowers of paradise. For were the impulses of conscience clear, uniform and irresistibly obeyed, man would need no other law-giver; but that not being the case, he finds it necessary to surrender up a part of his property to furnish means for the protection of the rest; and this he is induced to do by the same prudence which in every other case advises him, out of two evils to choose the least. Wherefore, security being the true design and end of government, it unanswerably follows that whatever form thereof appears most likely to ensure it to us, with the least expence and greatest benefit, is preferable to all others.

In order to gain a clear and just idea of the design and end of government, let us suppose a small number of persons settled in some sequestered part of the earth, unconnected with the rest; they will then represent the first peopling of any country, or of the world. In this state of natural liberty, society will be their first thought. A thousand motives will excite them thereto; the strength of one man is so unequal to his wants, and his mind so unfitted for perpetual solitude, that he is soon obliged to seek assistance and relief of another, who in his turn requires the same. Four or five united would be able to raise a tolerable dwelling in the midst of a wilderness, but one man might labor out the common period of life without accomplishing any thing; when he had felled his timber he could not remove it, nor erect it after it was removed; hunger in the mean time would urge him to quit his work, and every different want would call him a different way. Disease, nay even misfortune, would be death; for though neither might be mortal, yet either would disable him from living, and reduce him to a state in which he might rather be said to perish than to die.

Thus necessity, like a gravitating power, would soon form our newly arrived emigrants into society, the reciprocal blessings of which would supercede, and render the obligations of law and government unnecessary while they remained perfectly just to each other; but as nothing but

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Heaven is impregnable to vice, it will unavoidably happen that in proportion as they surmount the first difficulties of emigration, which bound them together in a common cause, they will begin to relax in their duty and attachment to each other: and this remissness will point out the necessity of establishing some form of government to supply the defect of moral virtue.

Some convenient tree will afford them a State House, under the branches of which the whole colony may assemble to deliberate on public matters. It is more than probable that their first laws will have the title only of regulations and be enforced by no other penalty than public disesteem. In this first parliament every man by natural right will have a seat.

But as the colony increases, the public concerns will increase likewise, and the distance at which the members may be separated, will render it too inconvenient for all of them to meet on every occasion as at first, when their number was small, their habitations near, and the public concerns few and trifling. This will point out the convenience of their consenting to leave the legislative part to be managed by a select number chosen from the whole body, who are supposed to have the same concerns at stake which those have who appointed them, and who will act in the same manner as the whole body would act were they present. If the colony continue increasing, it will become necessary to augment the number of representatives, and that the interest of every part of the colony may be attended to, it will be found best to divide the whole into convenient parts, each part sending its proper number: and that the *elected* might never form to themselves an interest separate from the *electors,* prudence will point out the propriety of having elections often: because as the *elected* might by that means return and mix again with the general body of the *electors* in a few months, their fidelity to the public will be secured by the prudent reflection of not making a rod for themselves. And as this frequent interchange will establish a common interest with every part of the community, they will mutually and naturally support each other, and on this, (not on the unmeaning name of king,) depends the *strength of government, and the happiness of the governed.*

Here then is the origin and rise of government; namely, a mode rendered necessary by the inability of moral virtue to govern the world; here too is the design and end of government, viz. freedom and security. And however our eyes may be dazzled with show, or our ears deceived by sound; however prejudice may warp our wills, or interest darken our understanding, the simple voice of nature and reason will say, 'tis right.

I draw my idea of the form of government from a principle in nature which no art can overturn, viz. that the more simple any thing is, the less liable it is to be disordered, and the easier repaired when disordered; and with this maxim in view I offer a few remarks on the so much boasted Constitution of England. That it was noble for the dark and slavish times in which it was erected, is granted. When the world was overrun with tyranny the least remove therefrom was a glorious rescue. But that it is imperfect, subject to convulsions, and incapable of producing what it seems to promise, is easily demonstrated.

Absolute governments, (though the disgrace of human nature) have this advantage with them, they are simple; if the people suffer, they know the head from which their suffering springs; know likewise the remedy; and are not bewildered by a variety of causes and cures. But the Constitution of England is so exceedingly complex, that the nation may suffer for years together without being able to discover in which part the fault lies; some will say in one and some in another, and every political physician will advise a different medicine.

I know it is difficult to get over local or long standing prejudices, yet if we will suffer ourselves to examine the component parts of the English Constitution, we shall find them to be the base remains of two ancient tyrannies, compounded with some new Republican materials.

First.—The remains of monarchical tyranny in the person of the king.

Secondly.—The remains of aristocratical tyranny in the persons of the peers.

Thirdly.—The new Republican materials, in the persons of the Commons, on whose virtue depends the freedom of England.

The two first, by being hereditary, are independent of the people; wherefore in a *constitutional sense* they contribute nothing towards the freedom of the State.

To say that the Constitution of England is an *union* of three powers, reciprocally *checking* each other, is farcical; either the words have no meaning, or they are flat contradictions.

To say that the Commons is a check upon the king, presupposes two things.

First.—That the king is not to be trusted without being looked after; or in other words, that a thirst for absolute power is the natural disease of monarchy.

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Secondly.—That the Commons, by being appointed for that purpose, are either wiser or more worthy of confidence than the crown.

But as the same constitution which gives the Commons a power to check the king by withholding the supplies, gives afterwards the king a power to check the Commons, by empowering him to reject their other bills; it again supposes that the king is wiser than those whom it has already supposed to be wiser than him. A mere absurdity!

There is something exceedingly ridiculous in the composition of monarchy; it first excludes a man from the means of information, yet empowers him to act in cases where the highest judgment is required. The state of a king shuts him from the world, yet the business of a king requires him to know it thoroughly; wherefore the different parts, by unnaturally opposing and destroying each other, prove the whole character to be absurd and useless.

Some writers have explained the English Constitution thus: the king, say they, is one, the people another; the peers are a house in behalf of the king, the Commons in behalf of the people; but this hath all the distinctions of a house divided against itself; and though the expressions be pleasantly arranged, yet when examined they appear idle and ambiguous; and it will always happen, that the nicest construction that words are capable of, when applied to the description of something which either cannot exist, or is too incomprehensible to be within the compass of description, will be words of sound only, and though they may amuse the ear, they cannot inform the mind: for this explanation includes a previous question, viz. *how came the king by a power which the people are afraid to trust, and always obliged to check?* Such a power could not be the gift of a wise people, neither can any power, *which needs checking,* be from God; yet the provision which the Constitution makes supposes such a power to exist.

But the provision is unequal to the task; the means either cannot or will not accomplish the end, and the whole affair is a *Felo de se:* for as the greater weight will always carry up the less, and as all the wheels of a machine are put in motion by one, it only remains to know which power in the constitution has the most weight, for that will govern: and though the others, or a part of them, may clog, or, as the phrase is, check the rapidity of its motion, yet so long as they cannot stop it, their endeavours will be ineffectual: The first moving power will at last have its way, and what it wants in speed is supplied by time.

That the crown is this overbearing part in the English Constitution needs not be mentioned, and that it derives its whole consequence merely from being the giver of places and pensions is self-evident; wherefore, though we have been wise enough to shut and lock a door against absolute Monarchy, we at the same time have been foolish enough to put the crown in possession of the key.

The prejudice of Englishmen, in favor of their own government, by king, lords and Commons, arises as much or more from national pride than reason. Individuals are undoubtedly safer in England than in some other countries: but the will of the king is as much the law of the land in Britain as in France, with this difference, that instead of proceeding directly from his mouth, it is handed to the people under the formidable shape of an act of Parliament. For the fate of Charles the First hath only made kings more subtle—not more just.

Wherefore, laying aside all national pride and prejudice in favor of modes and forms, the plain truth is that *it is wholly owing to the constitution of the people, and not to the constitution of the government* that the crown is not as oppressive in England as in Turkey.

An inquiry into the *constitutional errors* in the English form of government, is at this time highly necessary; for as we are never in a proper condition of doing justice to others, while we continue under the influence of some leading partiality, so neither are we capable of doing it to ourselves while we remain fettered by any obstinate prejudice. And as a man who is attached to a prostitute is unfitted to choose or judge of a wife, so any prepossession in favor of a rotten constitution of government will disable us from discerning a good one. . . .

Thoughts on the Present State of American Affairs

In the following pages I offer nothing more than simple facts, plain arguments, and common sense: and have no other preliminaries to settle with the reader, than that he will divest himself of prejudice and prepossession, and suffer his reason and his feelings to determine for themselves: that he will put on, or rather that he will not put off, the true character of a man, and generously enlarge his views beyond the present day.

Volumes have been written on the subject of the struggle between England and America. Men of all ranks have embarked in the controversy, from different motives, and with various designs; but all have been ineffectual, and the period of debate is closed. Arms as the last resource decide

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the contest; the appeal was the choice of the king, and the continent has accepted the challenge.

It hath been reported of the late Mr. Pelham (who though an able minister was not without his faults) that on his being attacked in the House of Commons on the score that his measures were only of a temporary kind, replied, "*they will last my time.*" Should a thought so fatal and unmanly possess the colonies in the present contest, the name of ancestors will be remembered by future generations with detestation.

The sun never shone on a cause of greater worth. 'Tis not the affair of a city, a county, a province, or a kingdom; but of a continent—of at least one eighth part of the habitable globe. 'Tis not the concern of a day, a year, or an age; posterity are virtually involved in the contest, and will be more or less affected even to the end of time, by the proceedings now. Now is the seed-time of continental union, faith and honor. The least fracture now will be like a name engraved with the point of a pin on the tender rind of a young oak; the wound would enlarge with the tree, and posterity read it in full grown characters.

By referring the matter from argument to arms, a new era for politics is struck—a new method of thinkings has arisen. All plans, proposals, &c. prior to the nineteenth of April, *i.e.* to the commencement of hostilities, are like the almanacks of the last year; which though proper then, are superceded and useless now. Whatever was advanced by the advocates on either side of the question then, terminated in one and the same point, viz. a union with Great Britain; the only difference between the parties was the method of effecting it; the one proposing force, the other friendship; but it has so far happened that the first has failed, and the second has withdrawn her influence.

As much has been said of the advantages of reconciliation, which, like an agreeable dream, has passed away and left us as we were, it is but right that we should examine the contrary side of the argument, and inquire into some of the many material injuries which these colonies sustain, and always will sustain, by being connected with and dependant on Great Britain. To examine that connection and dependance, on the principles of nature and common sense, to see what we have to trust to, if separated, and what we are to expect, if dependant.

I have heard it asserted by some, that as America has flourished under her former connection with Great Britain, the same connection is necessary towards her future happiness, and will always have the same effect. Nothing can be more fallacious than this kind of argument. We may as well assert that because a child has thrived upon milk, that it is never to have meat, or that the first twenty years of our lives is to become a precedent for the next twenty. But even this is admitting more than is true; for I answer roundly, that America would have flourished as much, and probably much more, had no European power taken any notice of her. The commerce by which she hath enriched herself are the necessaries of life, and will always have a market while eating is the custom of Europe.

But she has protected us, say some. That she hath engrossed us is true, and defended the continent at our expense as well as her own, is admitted; and she would have defended Turkey from the same motive, *viz.* for the sake of trade and dominion.

Alas! we have been long led away by ancient prejudices and made large sacrifices to superstition. We have boasted the protection of Great Britain, without considering, that her motive was *interest* not *attachment;* and that she did not protect us from *our enemies* on *our account;* but from *her enemies* on *her own account,* from those who had no quarrel with us on any *other account,* and who will always be our enemies on the *same account.* Let Britain waive her pretensions to the continent, or the continent throw off the dependance, and we should be at peace with France and Spain, were they at war with Britain. The miseries of Hanover's last war ought to warn us against connections.

It hath lately been asserted in Parliament, that the colonies have no relation to each other but through the parent country, *i.e.* that Pennsylvania and the Jerseys, and so on for the rest, are sister colonies by the way of England; this is certainly a very roundabout way of proving relationship, but it is the nearest and only true way of proving enmity (or enemyship, if I may so call it.) France and Spain never were, nor perhaps ever will be, our enemies as *Americans,* but as our being the *subjects of Great Britain.*

But Britain is the parent country, say some. Then the more shame upon her conduct. Even brutes do not devour their young, nor savages make war upon their families; wherefore, the assertion, if true, turns to her reproach; but it happens not to be true, or only partly so, and the phrase *parent* or *mother country* hath been jesuitically adopted by the king and his parasites, with a low papistical design of gaining an unfair bias on the credulous weakness of our minds. Europe, and not England, is the parent country of

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America. This new world hath been the asylum for the persecuted lovers of civil and religious liberty from *every part* of Europe. Hither have they fled, not from the tender embraces of the mother, but from the cruelty of the monster; and it is so far true of England, that the same tyranny which drove the first emigrants from home, pursues their descendants still.

In this extensive quarter of the globe, we forget the narrow limits of three hundred and sixty miles (the extent of England) and carry our friendship on a larger scale; we claim brotherhood with every European Christian, and triumph in the generosity of the sentiment.

It is pleasant to observe by what regular gradations we surmount the force of local prejudices, as we enlarge our acquaintance with the world. A man born in any town in England divided into parishes, will naturally associate most with his fellow parishioners (because their interests in many cases will be common) and distinguish him by the name of *neighbor;* if he meet him but a few miles from home, he drops the narrow idea of a street, and salutes him by the name of *townsman;* if he travel out of the county and meet him in any other, he forgets the minor divisions of street and town, and calls him *countryman, i.e. countyman;* but if in their foreign excursions they should associate in France, or any other part of *Europe,* their local remembrance would be enlarged into that of *Englishman.* And by a just parity of reasoning, all Europeans meeting in America, or any other quarter of the globe, are *countrymen;* for England, Holland, Germany, or Sweden, when compared with the whole, stand in the same places on the larger scale, which the divisions of street, town, and county do on the smaller ones; distinctions too limited for continental minds. Not one third of the inhabitants, even of this province, [Pennsylvania], are of English descent. Wherefore, I reprobate the phrase of parent or mother country applied to England only, as being false, selfish, narrow and ungenerous.

But, admitting that we were all of English descent, what does it amount to? Nothing. Britain, being now an open enemy, extinguishes every other name and title: and to say that reconciliation is our duty, is truly farcical. The first king of England, of the present line (William the Conqueror) was a Frenchman, and half the peers of England are descendants from the same country; wherefore, by the same method of reasoning, England ought to be governed by France.

Much hath been said of the united strength of Britain and the colonies, that in conjunction they might bid defiance to the world. But this is mere presumption; the fate of war is uncertain, neither do the expressions mean any thing; for this continent would never suffer itself to be drained of inhabitants, to support the British arms in either Asia, Africa or Europe.

Besides, what have we to do with setting the world at defiance? Our plan is commerce, and that, well attended to, will secure us the peace and friendship of all Europe; because it is the interest of all Europe to have America a free port. Her trade will always be a protection, and her barrenness of gold and silver secure her from invaders.

I challenge the warmest advocate for reconciliation to show a single advantage that this continent can reap by being connected with Great Britain. I repeat the challenge; not a single advantage is derived. Our corn will fetch its price in any market in Europe, and our imported goods must be paid for, buy them where we will.

But the injuries and disadvantages which we sustain by that connection, are without number; and our duty to mankind at large, as well as to ourselves, instruct us to renounce the alliance: because, any submission to, or dependence on, Great Britain, tends directly to involve this continent in European wars and quarrels, and set us at variance with nations who would otherwise seek our friendship, and against whom we have neither anger nor complaint. As Europe is our market for trade, we ought to form no partial connection with any part of it. It is the true interest of America to steer clear of European contentions, which she never can do, while, by her dependence on Britain, she is made the make-weight in the scale of British politics.

Europe is too thickly planted with kingdoms to be long at peace, and whenever a war breaks out between England and any foreign power, the trade of America goes to ruin, *because of her connection with Britain.* The next war may not turn out like the last, and should it not, the advocates for reconciliation now will be wishing for separation then, because neutrality in that case would be a safer convoy than a man of war. Every thing that is right or reasonable pleads for separation. The blood of the slain, the weeping voice of nature cries, 'Tis TIME TO PART. Even the distance at which the Almighty hath placed England and America is a strong and natural proof that the authority of the one over the other, was never the design of heaven. The time likewise at which the continent was discovered, adds

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weight to the argument, and the manner in which it was peopled, encreases the force of it. The Reformation was preceded by the discovery of America: As if the Almighty graciously meant to open a sanctuary to the persecuted in future years, when home should afford neither friendship nor safety.

The authority of Great Britain over this continent, is a form of government, which sooner or later must have an end. And a serious mind can draw no true pleasure by looking forward, under the painful and positive conviction that what he calls "the present constitution" is merely temporary. As parents, we can have no joy, knowing that this government is not sufficiently lasting to insure any thing which we may bequeath to posterity. And by a plain method of argument, as we are running the next generation into debt, we ought to do the work of it, otherwise we use them meanly and pitifully. In order to discover the line of our duty rightly, we should take our children in our hand, and fix our station a few years farther into life; that eminence will present a prospect which a few present fears and prejudices conceal from our sight.

Though I would carefully avoid giving unnecessary offence, yet I am inclined to believe, that all those who espouse the doctrine of reconciliation, may be included within the following descriptions.

Interested men, who are not to be trusted, weak men who *cannot* see, prejudiced men who will not see, and a certain set of moderate men who think better of the European world than it deserves; and this last class, by an ill-judged deliberation, will be the cause of more calamities to this continent than all the other three.

It is the good fortune of many to live distant from the scene of present sorrow; the evil is not sufficiently brought to their doors to make them feel the precariousness with which all American property is possessed. But let our imaginations transport us a few moments to Boston; that seat of wretchedness will teach us wisdom, and instruct us for ever to renounce a power in whom we can have no trust. The inhabitants of that unfortunate city who but a few months ago were in ease and affluence, have now no other alternative than to stay and starve, or turn out to beg. Endangered by the fire of their friends if they continue within the city, and plundered by the soldiery if they leave it, in their present situation they are prisoners without the hope of redemption, and in a general attack for their relief they would be exposed to the fury of both armies.

Men of passive tempers look somewhat lightly over the offences of Great Britain, and, still hoping for the best, are apt to call out, *Come, come, we shall be friends again for all this.* But examine the passions and feelings of mankind: bring the doctrine of reconciliation to the touchstone of nature, and then tell me whether you can hereafter love, honor, and faithfully serve the power that hath carried fire and sword into your land? If you cannot do all these, then are you only deceiving yourselves, and by your delay bringing ruin upon posterity. Your future connection with Britain, whom you can neither love nor honor, will be forced and unnatural, and being formed only on the plan of present convenience, will in a little time fall into a relapse more wretched than the first. But if you say, you can still pass the violations over, then I ask, hath your house been burnt? Hath your property been destroyed before your face? Are your wife and children destitute of a bed to lie on, or bread to live on? Have you lost a parent or a child by their hands, and yourself the ruined and wretched survivor? If you have not, then are you not a judge of those who have. But if you have, and can still shake hands with the murderers, then are you unworthy the name of husband, father, friend, or lover, and whatever may be your rank or title in life, you have the heart of a coward, and the spirit of a sycophant.

This is not inflaming or exaggerating matters, but trying them by those feelings and affections which nature justifies, and without which we should be incapable of discharging the social duties of life, or enjoying the felicities of it. I mean not to exhibit horror for the purpose of provoking revenge, but to awaken us from fatal and unmanly slumbers, that we may pursue determinately some fixed object. 'Tis not in the power of Britain or of Europe to conquer America, if she doth not conquer herself by delay and timidity. The present winter is worth an age if rightly employed, but if lost or neglected the whole continent will partake of the misfortune; and there is no punishment which that man doth not deserve, be he who, or what, or where he will, that may be the means of sacrificing a season so precious and useful.

'Tis repugnant to reason, to the universal order of things, to all examples from former ages, to suppose that this continent can long remain subject to any external power. The most sanguine in Britain doth not think so. The utmost stretch of human wisdom cannot, at this time, compass a plan, short of separation, which can promise the continent even a year's security. Reconciliation is *now* a fallacious

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dream. Nature has deserted the connection, and art cannot supply her place. For, as Milton wisely expresses, "never can true reconcilement grow where wounds of deadly hate have pierced so deep."

Every quiet method for peace hath been ineffectual. Our prayers have been rejected with disdain; and hath tended to convince us that nothing flatters vanity or confirms obstinacy in kings more than repeated petitioning—and nothing hath contributed more than that very measure to make the kings of Europe absolute. Witness Denmark and Sweden. Wherefore, since nothing but blows will do, for God's sake let us come to a final separation, and not leave the next generation to be cutting throats under the violated unmeaning names of parent and child.

To say they will never attempt it again is idle and visionary; we thought so at the repeal of the Stamp Act, yet a year or two undeceived us; as well may we suppose that nations which have been once defeated will never renew the quarrel.

As to government matters, 'tis not in the power of Britain to do this continent justice: the business of it will soon be too weighty and intricate to be managed with any tolerable degree of convenience, by a power so distant from us, and so very ignorant of us; for if they cannot conquer us, they cannot govern us. To be always running three or four thousand miles with a tale or a petition, waiting four or five months for an answer, which, when obtained, requires five or six more to explain it in, will in a few years be looked upon as folly and childishness. There was a time when it was proper, and there is a proper time for it to cease.

Small islands not capable of protecting themselves are the proper objects for government to take under their care; but there is something absurd, in supposing a Continent to be perpetually governed by an island. In no instance hath nature made the satellite larger than its primary planet; and as England and America, with respect to each other, reverse the common order of nature, it is evident that they belong to different systems. England to Europe: America to itself.

I am not induced by motives of pride, party or resentment to espouse the doctrine of separation and independence; I am clearly, positively, and conscientiously persuaded that it is the true interest of this continent to be so; that everything short of *that* is mere patchwork, that it can afford no lasting felicity,—that it is leaving the sword to our children, and shrinking back at a time when a little more, a little further, would have rendered this continent the glory of the earth.

As Britain hath not manifested the least inclination towards a compromise, we may be assured that no terms can be obtained worthy the acceptance of the continent, or any ways equal to the expence of blood and treasure we have been already put to.

The object contended for, ought always to bear some just proportion to the expense. The removal of North, or the whole detestable junto, is a matter unworthy the millions we have expended. A temporary stoppage of trade was an inconvenience, which would have sufficiently balanced the repeal of all the acts complained of, had such repeals been obtained; but if the whole continent must take up arms, if every man must be a soldier, 'tis scarcely worth our while to fight against a contemptible ministry only. Dearly, dearly do we pay for the repeal of the acts, if that is all we fight for; for, in a just estimation 'tis as great a folly to pay a Bunker Hill price for law as for land. As I have always considered the independency of this continent, as an event which sooner or later must arrive, so from the late rapid progress of the continent to maturity, the event cannot be far off. Wherefore, on the breaking out of hostilities, it was not worth the while to have disputed a matter which time would have finally redressed, unless we meant to be in earnest: otherwise it is like wasting an estate on a suit at law, to regulate the trespasses of a tenant whose lease is just expiring. No man was a warmer wisher for a reconciliation than myself, before the fatal nineteenth of April, 1775, but the moment the event of that day was made known, I rejected the hardened, sullen-tempered Pharaoh of England for ever; and disdain the wretch, that with the pretended title of FATHER OF HIS PEOPLE can unfeelingly hear of their slaughter, and composedly sleep with their blood upon his soul.

But admitting that matters were now made up, what would be the event? I answer, the ruin of the continent. And that for several reasons.

First. The powers of governing still remaining in the hands of the king, he will have a negative over the whole legislation of this continent. And as he hath shown himself such an inveterate enemy to liberty, and discovered such a thirst for arbitrary power, is he, or is he not, a proper person to say to these colonies, *You shall make no laws but what I please!?* And is there any inhabitant of America so ignorant as not to know, that according to what is called the

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present Constitution, this continent can make no laws but what the king gives leave to; and is there any man so unwise as not to see, that (considering what has happened) he will suffer no law to be made here but such as suits *his* purpose? We may be as effectually enslaved by the want of laws in America, as by submitting to laws made for us in England. After matters are made up (as it is called) can there be any doubt, but the whole power of the crown will be exerted to keep this continent as low and humble as possible? Instead of going forward we shall go backward, or be perpetually quarrelling, or ridiculously petitioning. We are already greater than the king wishes us to be, and will he not hereafter endeavor to make us less? To bring the matter to one point, Is the power who is jealous of our prosperity, a proper power to govern us? Whoever says *No,* to this question, is an independent for independency means no more than this, whether we shall make our own laws, or, whether the king, the greatest enemy this continent hath, or can have, shall tell us *there shall be no laws but such as I like.*

But the king, you will say, has a negative in England; the people there can make no laws without his consent. In point of right and good order, it is something very ridiculous that a youth of twenty-one (which hath often happened) shall say to several millions of people older and wiser than himself, "I forbid this or that act of yours to be law." But in this place I decline this sort of reply, though I will never cease to expose the absurdity of it, and only answer that England being the king's residence, and America not so, makes quite another case. The king's negative here is ten times more dangerous and fatal than it can be in England; for there he will scarcely refuse his consent to a bill for putting England into as strong a state of defense as possible, and in America he would never suffer such a bill to be passed.

America is only a secondary object in the system of British politics. England consults the good of this country no further than it answers her own purpose. Wherefore, her own interest leads her to suppress the growth of ours in every case which doth not promote her advantage, or in the least interferes with it. A pretty state we should soon be in under such a second hand government, considering what has happened! Men do not change from enemies to friends by the alteration of a name: And in order to show that reconciliation now is a dangerous doctrine, I affirm, *that it would be policy in the king at this time to repeal the acts, for the sake of reinstating himself in the government of the provinces;* In order that HE MAY ACCOMPLISH BY CRAFT AND SUBTLETY, IN THE LONG RUN, WHAT HE CANNOT DO BY FORCE AND VIOLENCE IN THE SHORT ONE. Reconciliation and ruin are nearly related.

Secondly. That as even the best terms which we can expect to obtain can amount to no more than a temporary expedient, or a kind of government by guardianship, which can last no longer than till the colonies come of age, so the general face and state of things in the interim will be unsettled and unpromising. Emigrants of property will not choose to come to a country whose form of government hangs but by a thread, and who is every day tottering on the brink of commotion and disturbance; and numbers of the present inhabitants would lay hold of the interval to dispose of their effects, and quit the continent.

But the most powerful of all arguments is, that nothing but independence, *i.e.* a continental form of government, can keep the peace of the continent and preserve it inviolate from civil wars. I dread the event of a reconciliation with Britain now, as it is more than probable that it will be followed by a revolt some where or other, the consequences of which may be far more fatal than all the malice of Britain.

Thousands are already ruined by British barbarity; (thousands more will probably suffer the same fate). Those men have other feelings than us who have nothing suffered. All they now possess is liberty; what they before enjoyed is sacrificed to its service, and having nothing more to lose they disdain submission. Besides, the general temper of the colonies, towards a British government will be like that of a youth who is nearly out of his time; they will care very little about her: And a government which cannot preserve the peace is no government at all, and in that case we pay our money for nothing; and pray what is it that Britain can do, whose power will be wholly on paper, should a civil tumult break out the very day after reconciliation? I have heard some men say, many of whom I believe spoke without thinking, that they dreaded an independence, fearing that it would produce civil wars: It is but seldom that our first thoughts are truly correct, and that is the case here; for there is ten times more to dread from a patched up connection than from independence. I make the sufferer's case my own, and I protest, that were I driven from house and home, my property destroyed, and my circumstances ruined, that as a man, sensible of injuries, I could never relish the doctrine of reconciliation, or consider myself bound thereby.

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The colonies have manifested such a spirit of good order and obedience to continental government, as is sufficient to make every reasonable person easy and happy on that head. No man can assign the least pretence for his fears, on any other grounds, than such as are truly childish and ridiculous, viz., that one colony will be striving for superiority over another.

Where there are no distinctions there can be no superiority; perfect equality affords no temptation. The Republics of Europe are all (and we may say always) in peace. Holland and Switzerland are without wars, foreign or domestic: Monarchical governments, it is true, are never long at rest: the crown itself is a temptation to enterprising ruffians at home; and that degree of pride and insolence ever attendant on regal authority, swells into a rupture with foreign powers in instances where a republican government, by being formed on more natural principles, would negociate the mistake.

If there is any true cause of fear respecting independence, it is because no plan is yet laid down. Men do not see their way out. Wherefore, as an opening into that business I offer the following hints; at the same time modestly affirming, that I have no other opinion of them myself, than that they may be the means of giving rise to something better. Could the straggling thoughts of individuals be collected, they would frequently form materials for wise and able men to improve into useful matter.

Let the assemblies be annual, with a president only. The representation more equal, their business wholly domestic, and subject to the authority of a Continental Congress.

Let each colony be divided into six, eight, or ten, convenient districts, each district to send a proper number of delegates to Congress, so that each colony send at least thirty. The whole number in Congress will be at least 390. Each Congress to sit and to choose a President by the following method. When the delegates are met, let a colony be taken from the whole thirteen colonies by lot, after which let the Congress choose (by ballot) a President from out of the delegates of that province. In the next Congress, let a colony be taken by lot from twelve only, omitting that colony from which the president was taken in the former Congress, and so proceeding on till the whole thirteen shall have had their proper rotation. And in order that nothing may pass into a law but what is satisfactorily just, not less than three-fifths of the Congress to be called a majority. He that will promote discord, under a government so equally formed as this, would have joined Lucifer in his revolt.

But as there is a peculiar delicacy from whom, or in what manner, this business must first arise, and as it seems most agreeable and consistent that it should come from some intermediate body between the governed and the governors, that is, between the Congress and the people, let a continental conference be held in the following manner, and for the following purpose,

A committee of twenty-six members of Congress, *viz.* Two for each colony. Two members from each House of Assembly, or Provincial Convention; and five representatives of the people at large, to be chosen in the capital city or town of each province, for, and in behalf of the whole province, by as many qualified voters as shall think proper to attend from all parts of the province for that purpose; or, if more convenient, the representatives may be chosen in two or three of the most populous parts thereof. In this conference, thus assembled, will be united the two grand principles of business, *knowledge* and *power.* The Members of Congress, Assemblies, or Conventions, by having had experience in national concerns, will be able and useful counsellors, and the whole, being impowered by the people, will have a truly legal authority.

The conferring members being met, let their business be to frame a Continental Charter, or Charter of the United Colonies; (answering to what is called the Magna Charta of England) fixing the number and manner of choosing Members of Congress, Members of Assembly, with their date of sitting; and drawing the line of business and jurisdiction between them: Always remembering, that our strength is continental, not provincial. Securing freedom and property to all men, and above all things, the free exercise of religion, according to the dictates of conscience; with such other matter as it is necessary for a charter to contain. Immediately after which, the said conference to dissolve, and the bodies which shall be chosen conformable to the said charter, to be the legislators and governors of this continent for the time being: Whose peace and happiness, may GOD preserve. AMEN.

Should any body of men be hereafter delegated for this or some similar purpose, I offer them the following extracts from that wise observer on governments, Dragonetti. "The science," says he, "of the politician consists in fixing the true point of happiness and freedom. Those men would deserve the gratitude of ages, who should discover a mode of government that contained the greatest sum of individual happiness, with the least national expense." (Dragonetti on "Virtues and Reward.")

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But where, say some, is the king of America? I'll tell you, friend, he reigns above, and doth not make havoc of mankind like the royal brute of Great Britain. Yet that we may not appear to be defective even in earthly honors, let a day be solemnly set apart for proclaiming the charter; let it be brought forth placed on the divine law, the Word of God; let a crown be placed thereon, by which the world may know, that so far as we approve of monarchy, that in America the law is king. For as in absolute governments the king is law, so in free countries the law ought to be king; and there ought to be no other. But lest any ill use should afterwards arise, let the crown at the conclusion of the ceremony be demolished, and scattered among the people whose right it is.

A government of our own is our natural right: and when a man seriously reflects on the precariousness of human affairs, he will become convinced, that it is infinitely wiser and safer, to form a Constitution of our own in a cool deliberate manner, while we have it in our power, than to trust such an interesting event to time and chance. If we omit it now, some Massanello may hereafter arise, who, laying hold of popular disquietudes, may collect together the desperate and the discontented, and by assuming to themselves the powers of government, finally sweep away the liberties of the continent like a deluge. Should the government of America return again into the hands of Britain, the tottering situation of things will be a temptation for some desperate adventurer to try his fortune; and in such a case, what relief can Britain give? Ere she could hear the news, the fatal business might be done; and ourselves suffering like the wretched Britons under the oppression of the conqueror. Ye that oppose independence now, ye know not what ye do: ye are opening a door to eternal tyranny, by keeping vacant the seat of government. There are thousands and tens of thousands, who would think it glorious to expel from the continent, that barbarous and hellish power, which hath stirred up the Indians and the Negroes to destroy us; the cruelty hath a double guilt, it is dealing brutally by us, and treacherously by them.

To talk of friendship with those in whom our reason forbids us to have faith, and our affections wounded through a thousand pores instruct us to detest, is madness and folly. Every day wears out the little remains of kindred between us and them; and can there be any reason to hope, that as the relationship expires, the affection will increase, or that we shall agree better when we have ten times more and greater concerns to quarrel over than ever?

Ye that tell us of harmony and reconciliation, can ye restore to us the time that is past? Can ye give to prostitution its former innocence? neither can ye reconcile Britain and America. The last cord now is broken, the people of England are presenting addresses against us. There are injuries which nature cannot forgive; she would cease to be nature if she did. As well can the lover forgive the ravisher of his mistress, as the continent forgive the murders of Britain. The Almighty hath implanted in us these unextinguishable feelings for good and wise purposes. They are the guardians of his image in our hearts. They distinguish us from the herd of common animals. The social compact would dissolve, and justice be extirpated from the earth, or have only a casual existence were we callous to the touches of affection. The robber and the murderer would often escape unpunished, did not the injuries which our tempers sustain, provoke us into justice.

O! ye that love mankind! Ye that dare oppose not only the tyranny but the tyrant, stand forth! Every spot of the old world is overrun with oppression. Freedom hath been hunted round the globe. Asia and Africa have long expelled her. Europe regards her like a stranger, and England hath given her warning to depart. O! receive the fugitive, and prepare in time an asylum for mankind.

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The Declaration of Independence

July 4, 1776

By the time the Continental Congress had decided to declare independence from Great Britain, armed conflict had been raging for more than a year. Soldiers on both sides were dying, and it was becoming increasingly clear that Parliament would not accede to American colonists' demands. Armed resistance would die out, however, without financial and material assistance—most prominently available from Britain's old enemy, France. In order to secure such aid, and to solidify support among opponents of parliamentary authority in America, the Continental Congress determined to officially declare the independence of the thirteen colonies from Great Britain. Jefferson's preamble to the Declaration, with its seemingly abstract statements of inalienable rights, is often quoted. Less quoted is the main body of the text, in which the Congress details the abuses committed by King George against his people in America. The charges are levelled against the king rather than Parliament. The principal reason for this is that Americans believed that their rights were secured through charters granted by the king. In the American view, it was the king alone, acting through colonial governments, through whom they were connected with the people and government of Great Britain.

The Declaration of Independence

In Congress, July 4, 1776,

The Unanimous Declaration of the Thirteen United States of America

When in the Course of human events, it becomes necessary for one people to dissolve the political bands which have connected them with another, and to assume among the powers of the earth, the separate and equal station to which the Laws of Nature and of Nature's God entitle them, a decent respect to the opinions of mankind requires that they should declare the causes which impel them to the separation.

We hold these truths to be self-evident, that all men are created equal, that they are endowed by their Creator with certain unalienable Rights, that among these are Life, Liberty and the pursuit of Happiness. That to secure these rights, Governments are instituted among Men, deriving their just powers from the consent of the governed. That whenever any Form of Government becomes destructive of these ends, it is the Right of the People to alter or to abolish it, and to institute new Government, laying its foundation on such principles and organizing its powers in such form, as to them shall seem most likely to effect their Safety and Happiness. Prudence, indeed, will dictate that Governments long established should not be changed for light and transient causes; and accordingly all experience hath shown, that mankind are more disposed to suffer, while evils are sufferable, than to right themselves by abolishing the forms to which they are accustomed. But when a long train of abuses and usurpations, pursuing invariably the same Object evinces a design to reduce them under absolute Despotism, it is their right, it is their duty, to throw off such Government, and to provide new Guards for their future security.—Such has been the patient sufferance of these Colonies; and such is now the necessity which constrains them to alter their former Systems of Government. The history of the present King of Great Britain is a history of repeated injuries and usurpations, all having in direct object the establishment of an absolute Tyranny over these States. To prove this, let Facts be submitted to a candid world.

He has refused his Assent to Laws, the most wholesome and necessary for the public good.

He has forbidden his Governors to pass Laws of immediate and pressing importance, unless suspended in their operation till his Assent should be obtained; and when so suspended, he has utterly neglected to attend to them.

He has refused to pass other Laws for the accommodation of large districts of people, unless those people would relinquish the right of Representation in the Legislature, a right inestimable to them and formidable to tyrants only.

He has called together legislative bodies at places unusual, uncomfortable, and distant from the depository of their Public Records, for the sole purpose of fatiguing them into compliance with his measures.

He has dissolved Representative Houses repeatedly, for

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opposing with manly firmness his invasions on the rights of the people.

He has refused for a long time, after such dissolutions, to cause others to be elected; whereby the Legislative Powers, incapable of Annihilation, have returned to the People at large for their exercise; the State remaining in the mean time exposed to all the dangers of invasion from without, and convulsions within.

He has endeavoured to prevent the population of these States; for that purpose obstructing the Laws of Naturalization of Foreigners; refusing to pass others to encourage their migration hither, and raising the conditions of new Appropriations of Lands.

He has obstructed the Administration of Justice, by refusing his Assent to Laws for establishing Judiciary Powers.

He has made Judges dependent on his Will alone, for the tenure of their offices, and the amount and payment of their salaries.

He has erected a multitude of New Offices, and sent hither swarms of Officers to harass our People, and eat out their substance.

He has kept among us, in times of peace, Standing Armies without the Consent of our legislatures.

He has affected to render the Military independent of and superior to the Civil power.

He has combined with others to subject us to a jurisdiction foreign to our constitution, and unacknowledged by our laws; giving his Assent to their acts of pretended Legislation:

For Quartering large bodies of armed troops among us:

For protecting them, by a mock Trial, from punishment for any Murders which they should commit on the Inhabitants of these States:

For cutting off our Trade with all parts of the world:

For imposing taxes on us without our Consent:

For depriving us in many cases, of the benefits of Trial by Jury:

For transporting us beyond Seas to be tried for pretended offenses:

For abolishing the free System of English Laws in a neighboring Province, establishing therein an Arbitrary government, and enlarging its Boundaries so as to render it at once an example and fit instrument for introducing the same absolute rule into these Colonies:

For taking away our Charters, abolishing our most valuable Laws, and altering fundamentally the Forms of our Governments:

For suspending our own Legislatures, and declaring themselves invested with power to legislate for us in all cases whatsoever.

He has abdicated Government here, by declaring us out of his Protection and waging War against us.

He has plundered our seas, ravaged our Coasts, burnt our towns, and destroyed the lives of our people.

He is at this time transporting large armies of foreign mercenaries to complete the works of death, desolation and tyranny, already begun with circumstances of Cruelty & perfidy scarcely paralleled in the most barbarous ages, and totally unworthy the Head of a civilized nation.

He has constrained our fellow Citizens taken Captive on the high Seas to bear Arms against their Country, to become the executioners of their friends and Brethren, or to fall themselves by their Hands.

He has excited domestic insurrections amongst us, and has endeavoured to bring on the inhabitants of our frontiers, the merciless Indian Savages, whose known rule of warfare, is an undistinguished destruction of all ages, sexes and conditions.

In every stage of these Oppressions We have Petitioned for Redress in the most humble terms: Our repeated petitions have been answered only by repeated injury. A Prince, whose character is thus marked by every act which may define a Tyrant, is unfit to be the ruler of a free people.

Nor have We been wanting in attention to our British brethren. We have warned them from time to time of attempts by their legislature to extend an unwarrantable jurisdiction over us. We have reminded them of the circumstances of our emigration and settlement here. We have appealed to their native justice and magnanimity, and we have conjured them by the ties of our common kindred to disavow these usurpations, which would inevitably interrupt our connections and correspondence. They too have been deaf to the voice of justice and of consanguinity. We must, therefore, acquiesce in the necessity, which denounces our Separation, and hold them, as we hold the rest of mankind, Enemies in War, in Peace Friends.

We, therefore, the Representatives of the United States of America, in General Congress Assembled, appealing to the Supreme Judge of the world for the rectitude of our intentions, do, in the Name and by Authority of the good People of these Colonies, solemnly publish and declare, That these United Colonies are, and of Right ought to be Free and Independent States; that they are Absolved from all Allegiance to the British Crown, and that all political

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connection between them and the State of Great Britain, is and ought to be totally dissolved; and that as Free and Independent States, they have full Power to levy War, conclude Peace, contract Alliances, establish Commerce, and to do all other Acts and Things which Independent States may of right do. And for the support of this Declaration, with a firm reliance on the protection of divine Providence, we mutually pledge to each other our Lives, our Fortunes and our sacred Honor.

John Hancock

New Hampshire
Josiah Bartlett
William Whipple
Matthew Thornton

Massachusetts
John Hancock
Samuel Adams
John Adams
Robert Treat Paine
Elbridge Gerry

Rhode Island
Stephen Hopkins
William Ellery

Connecticut
Roger Sherman
Samuel Huntington
William Williams
Oliver Wolcott

New York
William Floyd
Philip Livingston
Francis Lewis
Lewis Morris

New Jersey
Richard Stockton
John Witherspoon
Francis Hopkinson
John Hart
Abraham Clark

Pennsylvania
Robert Morris
Benjamin Rush
Benjamin Franklin
John Morton
George Clymer
James Smith
George Taylor
James Wilson
George Ross

Delaware
Caesar Rodney
George Read
Thomas McKean

Maryland
Samuel Chase
William Paca
Thomas Stone
Charles Carroll of Carrollton

Virginia
George Wythe
Richard Henry Lee
Thomas Jefferson
Benjamin Harrison
Thomas Nelson, Jr.
Francis Lightfoot Lee
Carter Braxton

North Carolina
William Hooper
Joseph Hewes
John Penn

South Carolina
Edward Rutledge
Thomas Heyward, Jr.
Thomas Lynch, Jr.
Arthur Middleton

Georgia
Button Gwinnett
Lyman Hall
George Walton

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